

THE DEMOCRATIC CONSTITUTION

A political system applicable to any nation



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THE DEMOCRATIC CONSTITUTION

Part 0: Introduction

What would a democratic constitution look like if it were agnostic to any historical or cultural context? What would be a valid set of rules that responds as purely and objectively as possible to the fundamental power dynamics of a democratic system? Power is not a matter of culture or history; it is a matter of human nature. There should exist a set of constitutional rules applicable to any human society.

This book is an attempt to answer that question. One, out of intellectual curiosity. And two, to create a baseline against which any present and future society can compare its own constitution and reform it, incorporating more democratic dynamics into it.

What you will find

Part 1 is the pure constitutional text: articles, thresholds, mechanisms, procedures. No explanations, no justifications, no philosophy. Just the rules.

Part 2 is the argumentation: why each design decision is the way it is. Every numerical threshold, every mechanism, every prohibition has a reason. If something seems arbitrary, excessive, or lenient in Part 1, the answer is in Part 2.

Disclaimer

This constitution is unconventional in several ways. Some provisions will feel uncomfortable or strange.

The general approach is that of a security audit: with the mindset of a hacker, every mechanism is subjected to the question “how does this break?”. It is assumed that someone with unlimited resources will attempt to capture the system, and it is designed so that the cost of doing so is prohibitive. Good will on the part of rulers is not assumed. No one’s morality is trusted. Trust is placed in the mechanisms, which although always imperfect as in any human system, are robust enough to minimize the probability of a breach.

Disclaimer regarding the review

This text has been reviewed article by article, searching for ambiguities, inconsistencies, broken references, and attack vectors. Dozens of findings have been corrected during that process. Even so, a constitution is a complex system and there may always be something left to polish. If you find something that does not fit, feel free to contact the author.

How to read this book

It is recommended to read Part 1 first, from beginning to end, without dwelling on details that may seem strange. Then, read Part 2 to understand the reasoning. Many decisions that appear arbitrary in Part 1 make sense in Part 2.

Book structure:

- **Part 0** — This introduction.
- **Part 1** — Complete constitutional text (72 articles, 6 titles).
- **Part 2** — Argumentation and philosophy behind each design decision.
- **Part 3** — Conclusion and references.

Part 1: Complete Constitutional Text

Complete Constitutional Text

Total articles: 72 **Structure:** 6 Titles

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 - **TITLE VI:** RIGHTS AND PROTECTIONS (Arts. 71-72)
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TITLE I: FUNDAMENTAL PRINCIPLES

Article 1: Popular Sovereignty and Hierarchy of Legitimacy

Sovereignty resides in the people. The people exercise their sovereignty through the direct and indirect mechanisms established in this Constitution.

The following hierarchy of democratic legitimacy is established, from highest to lowest:

1. Popular Power, which is exercised through the direct election of representatives (articles 10 and 13), the recall of legislative representatives (articles 11 and 12), the popular annulment of legislative decisions (article 6) and judicial decisions (article 46), and the initiative and referendum for constitutional reform (articles 67 through 69 inclusive).
2. Delegated powers: Legislative (Subtitle 1 of Title IV), Executive (Subtitle 2 of Title IV), and Judicial (Subtitle 3 of Title IV), equal among themselves and subject to reciprocal oversight in accordance with the mechanisms established in this Constitution (Subtitles 4-9 of Title IV).

Popular Power may oppose the decisions of any delegated power solely in accordance with the procedures established in this Constitution. No delegated power prevails over another; their conflicts are resolved through the mutual oversight mechanisms that this Constitution establishes.

Article 2: Consensus Levels

This Constitution establishes six consensus levels for decision-making:

1. Level N1: 51%.
2. Level N2: 60%.
3. Level N3: 66%.
4. Level N4: 75%.
5. Level N5: 85%.
6. Level N6: 95%.

Unless explicitly stated otherwise, percentages are calculated on the total number of valid votes cast. When an article specifies “of the electoral roll,” the percentage is calculated on the electoral roll in accordance with article 3. Voting within the Legislative Branch is governed by the specific rule established in article 23.

Article 3: Constitutional Subjects

This Constitution recognizes three categories of subjects:

1. Person: Every human being present in the national territory.
2. Citizen: A person who holds nationality in accordance with the law.
3. Citizen with the right to vote: A citizen who meets the conditions established in article 4.

Unless explicitly restricted by this Constitution or by law in conformity with it, every person enjoys the rights and protections established for persons. Every citizen additionally enjoys those established for citizens. Every citizen with the right to vote additionally enjoys those established for citizens with the right to vote.

Citizens retain all rights established for persons regardless of their geographic location.

When this Constitution says “the people,” it refers to the body of citizens.

When this Constitution says “electoral roll,” it refers to the register of citizens with the right to vote. The scope of the electoral roll, whether national or district-level, is specified in each article.

Restrictions on rights arising from a final criminal conviction are governed by law, within the limits of this Constitution.

Article 4: Universal Suffrage

Every citizen who reaches the voting age has the right to suffrage. Each citizen has one vote of equal value: one citizen, one vote. Suffrage may not be restricted except within the age limits established in this article.

The voting age is 18 years by default. This value may be adjusted between 18 and 23 years by Level N5 consensus of the Legislative Branch. The limits of this range may only be modified through the reform procedure established in article 67.

Article 5: Secrecy and Verifiability of the Vote

The vote is secret by default, except for votes of the Legislative Branch, which are public in accordance with article 23. No person, other than the citizen who cast it, may know the direction of the vote. The vote is non-delegable: it may not be sold, delegated, or transferred. The vote is verifiable: each voter may verify that their vote was counted correctly. The electoral process must be auditable by any citizen with the right to vote.

The specific technological and organizational details for implementing these guarantees are defined during the Bootstrap Process in accordance with Title III.

If a voting process has failed to comply with the guarantees established in this article, any citizen with the right to vote may petition for its nullification before the Judicial Branch. If the number of affected votes is sufficient to have altered the outcome, the judge shall declare the vote null and it must be repeated. Those responsible shall in all cases be subject to the criminal consequences established by ordinary legislation.

Article 6: Guarantee of Popular Annulment

This Constitution permanently guarantees the right to create mechanisms for the direct popular annulment of legislative decisions. No law, regulation, or decision of any branch of government may prohibit the creation or operation of such mechanisms.

If a popular annulment mechanism is implemented, the level of citizen support required to annul a decision shall correspond to the minimum consensus level required for that decision: Level N1 decisions may be annulled with the support of 51% of the national electoral roll, Level N2 decisions with 60%, and so forth in accordance with the consensus levels N1 through N6 established in article 2. As an exception, the legislation that develops the specific grounds for states of exception pursuant to article 56 may be annulled with the support of 51% of the national electoral roll, regardless of the legislative consensus level with which it was approved. Every popular annulment process must comply with the guarantees of secrecy, verifiability, and public audit established in articles 5 and 17.

Article 7: Right to Territorial Self-Determination

It is prohibited to prevent by law any territory from exercising the right to self-determination. The process of territorial independence must be regulated by law, but under no circumstances may it be prohibited or suppressed.

The law may establish requirements and conditions for the independence process. These requirements may be demanding, but shall be limited by the following conditions: the minimum duration of an independence process, from its formal declaration to its definitive resolution, whether approval or rejection, is 21 years; the maximum duration is 42 years.

Article 8: Equality Before the Law and Public Accountability

No member of the branches of government enjoys any immunity or legal privilege by reason of their office. All are citizens subject to the same laws as any other citizen. Criminal prosecution of any public officeholder does not require prior authorization from the branch to which they belong or from any other body.

Criminal proceedings against public officeholders may be processed on a priority basis over proceedings against ordinary citizens. This Constitution does not establish the method of prioritization, but guarantees that such a mechanism may exist and shall not be suppressed by ordinary law.

Any person who loses a public office due to a final criminal conviction is permanently disqualified from holding any position in the public administration, regardless of the branch to which the office belonged. Modification of this disqualification requires Level N5 consensus.

Article 9: Official Language

The State has at least one official language. The official language is the language in which laws are drafted, judicial proceedings are conducted, public administration is exercised, and compulsory education is guaranteed. In case of conflict of interpretation between linguistic versions of a legal provision, the version in the official language prevails.

By default, the official language is the one that held such status under the regime prior to the entry into force of this Constitution. During the Bootstrap Process in accordance with Title III, the Legislative Branch may confirm or modify the official language by Level N4 consensus.

The designation of an official language does not prohibit the use of other languages in the private sphere or in public life. The State may recognize co-official languages in specific territories through ordinary legislation, provided that the official language retains its mandatory character in the domains established in this article.

End of Title I

TITLE II: ELECTORAL SYSTEM

Article 10: Representation by Territorial Districts

Representatives of the Legislative Branch are elected by territorial districts through single-member elections. Each district elects one representative.

Districts may have a system of alternates to ensure continuity of representation, with a minimum of 0 and a maximum of 2 alternates per district. When a district is left without a representative or available alternates, a new election is called in accordance with article 13.

The number of alternates per district may be modified by Level N4 consensus, either at the national level (a Legislative decision applicable to all districts) or at the district level (a district decision applicable only to that district), according to procedures established by ordinary law.

Popular power at the district level prevails over the national Legislature only in the cases explicitly established in this Constitution. Outside of these cases, district-level popular power may not override decisions of the national Legislature.

Article 11: Revocability of Representatives

Representatives of the Legislative Branch shall always be directly revocable by the people of the district that elected them. This mechanism applies exclusively to legislative representatives in their electoral district. No law, regulation, or decision of any branch of government may suppress this right.

Article 12: Recall Procedure

This article establishes the default procedure for the recall of Legislative Branch representatives in accordance with article 11.

Initiative: Any citizen with the right to vote, individually or in a group, may initiate a recall proceeding. This capacity for individual initiative may only be modified by Level N6 consensus.

Call: Requires the collection of signatures from 10% of the district electoral roll within a maximum period of 31 days.

Vote: Once called, the vote is open to every citizen with the right to vote registered in the district who has been registered in the district for at least 2 years. A minimum participation of 25% of the district electoral roll is required for the vote to be valid. The entire recall process, from the formal call for the vote to the result, may not exceed 2 weeks in duration.

Effect: If the result reaches Level N4 consensus in favor of recall, the mandate is extinguished and a new election is called within a maximum of 7 days.

Reflection Period: No new recall may be called against the successor before 4 months have elapsed since their election.

Configurability: The numerical parameters of this article may be modified by Level N6 consensus. These are: 10% of the district electoral roll signatures required for the call, 31 days maximum for signature collection, Level N4 required for successful recall, 7 days maximum to call a new election after recall, 4 months reflection period before a new recall, 2 weeks maximum total process duration, 25% minimum participation of the district electoral roll, and 2 years minimum registered in the district to vote in a recall.

During the Bootstrap Process, these numerical parameters may be modified with Level N2 consensus, but the recall mechanism itself may not be eliminated. The details of the Bootstrap Process are established in Title III of this Constitution.

Article 13: Two-Round Electoral System in Districts

This article applies to elections of Legislative Branch representatives by district.

In the first round, if a candidate reaches or exceeds 51% of valid votes, they are proclaimed elected directly. If no candidate exceeds 51%, a second round is held between the two candidates with the most votes within a maximum of 7 days. The candidate who obtains more votes in the second round is proclaimed elected.

A minimum participation of 25% of the district electoral roll is required for the election to be valid in each round. If this minimum is not reached in any round, the entire election is repeated from the first round within 7 days. This continues until the required minimum participation is reached.

The numerical parameters of this article may be modified by Level N6 consensus. These are: 51% of valid votes required in the first round, 25% minimum participation of the district electoral roll, 7 days maximum between the first and second round, and 7 days maximum to repeat the election if minimum participation is not reached.

Article 14: District Size

The size of each district is between 95,000 and 120,000 inhabitants. The exact figure is determined by the District Corruptibility Optimization Algorithm (DCOA), whose complete specifications are as follows:

Objective function: Maximize the minimum value of the 25th percentile of income across all districts in the country. That is, the optimal district distribution is the one in which the district with the lowest 25th percentile of income has that value as high as possible.

Input data: 1. Population data by the smallest available geographic unit, such as municipality, census tract, or equivalent. 2. Income distribution data by geographic unit. 3. Geographic map of the national territory.

Constraints: 1. Each district has between 95,000 and 120,000 inhabitants. 2. Geographic continuity: each district must be a continuous territory, without enclaves or exclaves. 3. Historical-cultural coherence: the delimitation respects provincial, municipal, or county boundaries. It may only cross these boundaries when strictly necessary to meet the population constraints established in this article. 4. Exception for geographic impossibility: when the constraints of geographic continuity and historical-cultural coherence prevent forming a district within the established population range, that district is permitted to exceed or fall short of the limits, provided the deviation is the minimum necessary.

The numerical parameters of this article may be modified by Level N6 consensus. These are: 95,000 and 120,000 inhabitants as the population range limits per district. During the Bootstrap Process, the Legislature may establish different parameters by Level N3 consensus.

Article 15: Periodic District Update

Electoral districts are updated every 21 years. The update is carried out using the District Corruptibility Optimization Algorithm (DCOA) in accordance with article 14. The complete specifications of the DCOA are established in this Constitution and are public and auditable. The process is executed by an independent technical commission and ratified by the Legislative Branch by Level N1 consensus.

If the Legislature rejects the update, the commission may produce a new proposal with corrected or updated data. If the new proposal is also rejected, the current district distribution remains in effect until the next scheduled update.

The first district distribution shall be established during the Transition Process (article 18). The first update shall take place 21 years after the entry into force of this Constitution.

The district update period of 21 years may be modified by Level N5 consensus.

Article 16: Electoral Financing

Public financing: If public financing for electoral campaigns exists, the amount must be identical for all candidates without exception. All public electoral financing is transparent and recorded in a publicly auditable system. Any citizen may verify the origin and destination of public electoral funds.

Private donations: Private donations to candidates or campaigns are subject to a strict limit. Only citizens with the right to vote may make private donations; legal entities, such as corporations, associations, or foundations, are prohibited from donating to electoral campaigns. The maximum donation per citizen with the right to vote is 10% of the salary corresponding to the 25th percentile of income nationwide. Each citizen with the right to vote may make only 1 donation per electoral process.

The origin of private donations is secret. The destination and amount thereof are transparent and publicly auditable.

Protection against illegal financing: If it is detected that the total amount raised by all candidates exceeds the legal maximum permitted, defined as the number of citizens with the right to vote multiplied by the maximum individual donation, the election shall be declared null. The funds shall be expropriated and returned to the donors. The surplus money shall be distributed equally among all candidates in the new elections, which shall begin within 7 days. If this situation recurs, the elections shall be held in the second call regardless of whether this situation occurs again. If those responsible for the illegal financing are identified, each culprit shall pay a penalty of 10 times the amount by which they exceeded the legal limit. Payment may be enforced by any means, including expropriation of assets.

Reflection period: During the 7 days prior to any election, all forms of electoral campaigning are prohibited. During this period, candidates may only address the electorate through public events in previously agreed spaces, guaranteeing each candidate the same amount of time and conditions. Organizational details are established by electoral legislation. Violations are sanctioned in accordance with electoral legislation.

Configurability: The numerical parameters of this article may be modified by Level N6 consensus. These are: 10% of the P25 as the maximum individual donation, 1 donation per citizen per electoral process, 7 days to call new elections after annulment, the limit on the number of calls before a definitive election, and 7 days of reflection period prior to the election.

Article 17: Verifiable Remote Voting

Voting may be exercised remotely through a system that simultaneously guarantees:

1. Secrecy of the vote: impossibility of knowing who voted for what.
2. Individual verifiability: each voter may verify that their vote was counted.
3. Public audit: any citizen with the right to vote may verify the integrity of the process.

This Constitution does not prescribe a specific technology: what matters are the guarantees of the process, not the specific technical method. The system must comply with the guarantees established in article 5 regardless of the technology employed.

End of Title II

TITLE III: TRANSITION PROCESS

Article 18: Institutional Transition

The Transition Process begins immediately after the approval of this Constitution and ends when the President elected in accordance with article 24 takes office. During this period, the regime prior to the entry into force of this Constitution continues governing on an interim basis, exercising exclusively executive functions and subject to the principles and provisions of this Constitution.

The prior regime publishes the result of the District Corruptibility Optimization Algorithm in accordance with article 14, together with all the data used for its execution, so that any citizen may verify the result, within a maximum of 3 weeks from the approval of this Constitution. Following the publication and formation of districts, elections are called in the following order, each in a distinct and consecutive month: first, elections to the Legislative Branch in accordance with article 13; second, elections to the Executive Branch in accordance with article 24.

If a state of exception is declared during the Transition Process in accordance with article 55, the prior regime assumes control until the cessation of the state of exception, always under the principles of this Constitution. After cessation, the Transition Process resumes from the point at which it was interrupted. This rule applies recursively: if a new state of exception is declared during the resumed Transition Process, the same mechanism applies.

Article 19: Bootstrap Process - Special Mandate

The Bootstrap Process is the 1-year period immediately following the completion of the Transition Process (article 18). This 1-year duration may not be modified during the Bootstrap Process itself. During this period, certain consensus levels required by this Constitution are reduced as specified in each corresponding article.

If a state of exception is declared during the Bootstrap Process in accordance with article 55, the Bootstrap Process is suspended for the duration of the state of exception. After cessation, the Bootstrap Process resumes with the remaining time that was left on the day prior to the declaration of the state of exception, with a minimum of 2 months. This rule applies recursively: if a new state of exception is declared during the resumed Bootstrap Process, the same mechanism applies.

Once the Bootstrap Process has ended, the consensus reductions applied during it are no longer in effect. From that point forward, the ordinary consensus levels established in each article apply. The Bootstrap Process may not be reactivated; it is a one-time mechanism applicable only during the initial establishment phase of this Constitution.

End of Title III

TITLE IV: SEPARATION AND CHECKS OF THE BRANCHES OF GOVERNMENT

Article 20: Separation of Powers

The Legislative, Executive, and Judicial branches shall be independent of one another. No branch may exercise functions constitutionally assigned to another. This separation is substantive, not merely formal: each branch must have independence of appointment and economic financing mechanisms that guarantee its effective autonomy.

No person may simultaneously hold more than one public office among those established in this Constitution. Acceptance of a new office entails automatic resignation from the prior one.

The financing of each branch must be as described in articles 30 through 32 inclusive and article 53 of this Constitution.

SUBTITLE 1: LEGISLATIVE BRANCH

Article 21: Legislative Branch - Composition

The Legislative Branch is composed of a single chamber of representatives elected by territorial districts in accordance with article 10. Representatives are elected for a term of 4 years and are directly revocable by the people of their district in accordance with articles 11 and 12.

Article 22: Legislative Branch - Functions

The Legislative Branch shall exercise the monopoly of the legislative function except as otherwise provided in this Constitution, without prejudice to the constitutionality review exercised by the Judicial Branch in accordance with articles 42 and 43. Its functions include:

1. Approving, amending, or repealing laws.
 2. Approving the annual State budget.
 3. Approving or rejecting the budget proposed by the Judicial Branch in accordance with article 32.
-

Article 23: Legislative Branch - Voting

All votes of the Legislature are public and recorded in a system auditable by any citizen. The vote of each representative must be known or verifiable by their constituents.

In votes of the Legislative Branch, consensus levels are calculated on the total number of seats. There is no abstention or blank vote: a representative who does not cast a vote in favor is counted as a vote against. Vacant seats are likewise counted as votes against.

The majority required by default to approve, amend, or repeal laws is Level N1 consensus, except in cases where this Constitution establishes specific qualified majorities.

The Legislature may not approve more than 7 laws per week.

SUBTITLE 2: EXECUTIVE BRANCH

Article 24: Executive Branch - President

The President of the Republic is elected by direct suffrage of all citizens with the right to vote in accordance with article 4, through a two-round system.

In the first round, if a candidate reaches or exceeds 51% of valid votes, they are proclaimed elected directly. If no candidate exceeds 51%, a second round is held between the two candidates with the highest percentage of votes. The candidate who obtains the highest percentage in the second round is proclaimed elected.

A minimum participation of 30% of the national electoral roll is required for the presidential election to be valid. If this minimum is not reached, the election is repeated within 14 days. This continues until the required minimum participation is reached. During this period, the outgoing President continues in office on an interim basis. If the outgoing President is unable to serve, the line of succession established in article 26 applies.

The presidential term is 5 years. No person may serve as President for more than two consecutive terms. After two consecutive terms, at least one full presidential term must elapse before the person may be elected again.

The numerical parameters of this article may be modified by Level N6 consensus. These are: 51% of valid votes required in the first round, 30% minimum participation of the national electoral roll, 14 days maximum to repeat the election if minimum participation is not reached, 5-year term, maximum of 2 consecutive terms, and 1-term waiting period before eligibility for re-election.

Article 25: Executive Branch - Presidential Functions

The President exercises the entirety of the Executive Branch. Presidential functions include:

1. Head of State.
2. National defense and command of the Armed Forces (article 49).
3. Foreign relations and international representation.
4. Declaration of states of exception (article 55).
5. Domestic policy and governmental coordination.
6. Management of public expenditure in accordance with the budget approved by the Legislature.
7. Structure and direction of ministries.
8. Declaration of war and military decisions established in articles 50, 51, and 52.

The President may delegate the preparation and proposal of decisions to ministers appointed in accordance with article 29. Every decision of the Executive Branch requires the President's approval for its execution.

Article 26: Presidential Succession

The President appoints a Vice President. The Vice President's term coincides with that of the President.

If the President dies, resigns, or is declared incapacitated in accordance with article 27, the Vice President assumes the Presidency on an interim basis. New presidential elections are called within a maximum of 45 days from the interim assumption, except during states of exception in accordance with article 61. The interim Vice President may run as a candidate. Whoever assumes the interim Presidency is subject to the same responsibilities, obligations, and consequences as the elected President. If the elections are not held within the established timeframe, whoever holds the interim Presidency is considered a usurper of the office, with all applicable legal consequences.

If the President is removed through the mutual destruction mechanism in accordance with article 39, the Vice President assumes the Presidency on an interim basis until new elections are held. During this period, the interim Vice President exercises exclusively institutional maintenance functions: they may not approve new budgets, appoint or dismiss ministers, or initiate new policies.

If the Vice President is unable to assume the interim Presidency, it is assumed by the longest-serving representative of the Legislature, under the same conditions. The Legislative Branch may extend the line of succession but not reduce it by Level N3 consensus; during the Bootstrap Period, by Level N1 consensus.

Article 27: Presidential Incapacity

Presidential incapacity is declared exclusively by the Judicial Branch, upon request of the Vice President or the Legislative Branch by N2 consensus. The declaration is appealable by any citizen with the right to vote. If the declaration of incapacity is reversed on appeal, the responsible judge is subject to criminal sanction in accordance with article 45, of similar severity to those established for cases of unconstitutionality in article 44.

Grounds for incapacity include: coma and severe cognitive deterioration. The Legislative Branch may expand this list but not reduce it by N3 consensus; during the Bootstrap Period, by N2 consensus.

If the President recovers capacity before new presidential elections are held, they automatically resume office.

Article 28: Ministries - Constitutional Limit

The maximum number of ministries by default is 20. The ministerial structure is the exclusive competence of the President in accordance with article 25. This Constitution does not establish a closed list of ministries, only their maximum number.

During the Bootstrap Process, this limit may be modified with Level N1 consensus.

Article 29: Ministries - Appointment

Ministers are appointed and dismissed exclusively by the President, unless a minister is convicted by a final criminal judgment whose sentence includes removal from office. In that case, removal is automatic and independent of the President's will. Permanent disqualification is governed by article 8.

Article 30: Prior Budget by Default

If the Legislature does not approve a new budget before the start of the fiscal year, the prior year's budget is automatically extended, adjusted for inflation over the period.

Article 31: Executive Budget Limit

The Executive Branch may not commit expenditures exceeding the limits approved by the Legislature in the annual budget. All public expenditure whose amount per transaction exceeds the threshold established by law is recorded in a publicly auditable system accessible to any citizen or person with tax residency in the country, on a permanent basis.

SUBTITLE 3: JUDICIAL BRANCH**Article 32: Judicial Branch - Independence and Financing**

The Judicial Branch is independent of the Legislative and Executive branches. Judges do not receive orders or instructions from any other branch.

The Supreme Court prepares and proposes the annual budget of the Judicial Branch. Any justice may submit a budget proposal. The proposal requires the approval of at least 2/3 of the justices of the Supreme Court to be presented to the Legislature. If this agreement is not reached, the prior year's budget is automatically

maintained, adjusted for inflation. The Legislature may approve or reject the proposed budget by Level N3 consensus, but may not modify it. If the proposed budget is rejected, the prior year's budget is automatically maintained, adjusted for inflation.

The consensus level required for the rejection of the judicial budget may be modified by Level N5 consensus.

Article 33: Judicial Branch - Hierarchy

The judicial structure is organized in three levels:

1. First Instance: Ordinary courts.
2. Second Instance: Courts of appeal and cassation.
3. Supreme Court: Court of last resort.

The decisions of the Supreme Court are final in the judicial order, without prejudice to the popular annulment established in article 46.

Modification of the three-level structure requires Level N5 consensus.

Article 34: Right of Appeal and Cassation

Every party in a judicial proceeding has the right to at least one appeal and one cassation before a court of the immediately superior level. This right is exercised per case and per level: when multiple parties request review of the same case at the same level, the case ascends only once, not once for each party requesting it.

Appeal allows full review of facts and law. Cassation is an additional review that examines exclusively the correct application of law, without re-examination of facts except in cases of manifest arbitrariness in their assessment.

When this Constitution establishes that a decision of the Supreme Court is subject to appeal, the appeal is resolved by a different justice of the same Court. The justice who issued the appealed decision may not participate in resolving the appeal. The assigned justice is selected through a deterministic random mechanism. The default procedure is as follows: a cryptographic hash function is applied to the biometric data of the appellant. The biometric datum is selected according to the following priority: fingerprint of the left hand (from little finger to thumb), of the right hand (from thumb to little finger), of the left foot (from little toe to big toe), of the right foot (from big toe to little toe), retina of the left eye, retina of the right eye. The first available datum is used. If none of these biometric data are available, those of the justice who issued the appealed decision are used. The justices are ordered by seniority in office, with the most senior being first. The result of applying the modulo operation of the number of justices to the hash result determines the index of the assigned justice according to the established seniority order. If the result points to the justice who issued the appealed decision, it is incremented by one and the modulo is applied again. The assignment method may be modified during the Bootstrap Process by Level N1 consensus, provided the alternative method is deterministic, non-manipulable, and publicly verifiable.

The total number of appeals and cassations in a single case may not exceed 5.

Article 35: Appointment of Judges - Principle

Judges are appointed through a procedure that guarantees judicial independence. Judicial appointment requires:

1. A law degree accredited by the Judicial Branch.
2. Passing a public qualification examination.

The qualification examination is designed, administered, and graded exclusively by the Judicial Branch. No other branch, body, or external entity participates in its preparation or evaluation.

Valid degrees are determined by agreement of at least 2/3 of the justices of the Supreme Court. This determination may only be modified once every 8 years. Every modification includes a 1-year transition period during which previously accredited degrees retain their validity.

The same accreditation regime applies to law schools and legal institutions recognized by the Judicial Branch. During the Bootstrap Process, all law schools existing under the prior regime are accredited by default. After the appointment of the first cohort of Supreme Court justices, the initial list may be modified by Level N1 consensus of the justices. Thereafter, every modification requires 2/3 agreement in accordance with the general regime of this article.

Modification of these requirements requires Level N5 consensus of the Legislative Branch.

Article 36: Supreme Court - Composition

The Supreme Court is composed of 9 justices. Each justice is appointed for a maximum term of 12 years. The term is renewable after an exclusion period of 8 years from the completion of the prior term. Renewal is staggered: every 4 years, 3 justices are renewed. The initial constitution and renewal of the Supreme Court are governed by the procedures established in article 38.

The numerical parameters of this article (9 justices, 12-year term, 8-year exclusion, 4-year renewal cycle, 3 justices per cycle) may be modified by Level N5 consensus. Any modification of these parameters must maintain the coherence of the staggered renewal: the total number of justices must be divisible by the number of justices renewed per cycle. Modification or elimination of this coherence requirement requires Level N6 consensus.

Article 37: Supreme Court - Appointment

Candidates for Supreme Court justice are proposed exclusively by the following institutions, each with at least 10 years of operation in the country:

1. Bar associations.
2. Law schools accredited in accordance with article 35.
3. Associations of judges from courts below the Supreme Court.

Candidates for Supreme Court justice must demonstrate a minimum of 5 years of experience as a judge. This minimum may be adjusted between 5 and 10 years; during the Bootstrap Process by Level N1 consensus, outside of it by Level N4 consensus.

The final election is conducted through direct and binding vote of legal professionals. Each voter has one vote of equal value; the vote is non-delegable. The definition of who qualifies as a legal professional for the purposes of this vote is established during the Bootstrap Process by Level N1 consensus. The total number of candidates must be strictly greater than the number of vacancies. The specific procedure, including the number of candidates proposed by each institution and the voting system, is established during the Bootstrap Process by Level N2 consensus. Modification of any parameter of this article outside the Bootstrap Process requires Level N5 consensus.

Article 38: Supreme Court - Procedures for Constitution and Renewal

Initial constitution:

During the Bootstrap Process, the 9 justices are appointed simultaneously in accordance with article 37. To establish the staggered renewal, differentiated initial terms are assigned by verifiable random drawing. The

drawing must be deterministic, non-manipulable, and publicly verifiable. The specific drawing procedure is established during the Bootstrap Process by Level N1 consensus, provided it meets these three characteristics. Outside the Bootstrap Process, this procedure may not be modified.

If no alternative procedure is established during the Bootstrap Process, the default procedure is as follows: a cryptographic hash function (such as SHA-256 or Keccak-256) is applied to the biometric data of each justice. The biometric datum is selected according to the following priority: fingerprint of the left hand (from little finger to thumb), of the right hand (from thumb to little finger), of the left foot (from little toe to big toe), of the right foot (from big toe to little toe), retina of the left eye, retina of the right eye. The first available datum is used. The 3 justices with the highest value in the first 2 bytes of the hash serve an initial term of 4 years, the 3 with the highest value among the remaining 6 serve 8 years, and the remaining 3 serve the full term of 12 years. Thereafter, all terms are 12 years.

In case of a tie in the first 2 bytes of the hash between two or more justices contending for the same term bracket, successive subsequent bytes of the hash (third, fourth, etc.) are compared until the tie is resolved. The justice with the highest value in the tiebreaking byte receives the shorter term in the contested bracket.

Staggered renewal:

Every 4 years, 3 new justices are appointed in accordance with article 37, replacing the 3 justices whose terms have expired. Outgoing justices may be proposed again as candidates once the exclusion period established in article 36 has elapsed.

Early vacancies:

In case of a vacancy before the expiration of the term, the replacement is appointed in accordance with article 37 and serves only the remaining time of the original term, preserving the staggered renewal calendar. While the vacancy is not filled, the vacant seat is counted as a vote against in Supreme Court decisions that require consensus among justices.

SUBTITLE 4: BALANCE BETWEEN BRANCHES

Article 39: Mutual Destruction - Mechanism

The Legislature may remove the President by Level N1 consensus vote. The President may dissolve the Legislature. Both actions automatically entail the calling of simultaneous new elections for the Legislature (article 13) and the President (article 24) within a minimum of 7 days and a maximum of 30 days.

The numerical parameters of this article may be modified by Level N6 consensus. They are not modifiable during the Bootstrap Process, except for the timeframe for calling new elections, which may be set within the range of 7 to 30 days by Level N1 consensus. Outside the Bootstrap Process, the timeframe may be adjusted within this range by Level N4 consensus.

The mutual destruction mechanism may not be activated during a state of exception declared in accordance with article 55. If a state of exception occurs during the period between the activation of mutual destruction and the holding of new elections, the dissolved Legislature is reconvened exclusively to exercise the oversight functions established in articles 58 through 63 inclusive. Outside these functions, the Legislature remains dissolved.

Article 40: Mutual Destruction - Deactivation Period

Following the activation of the mutual destruction mechanism (article 39), an asymmetric deactivation period operates during which neither party may activate the mutual destruction mechanism. The deactivation period applies differently to the party that invoked it and the party that received it:

If activated by the Legislature: - Deactivation period for the Legislature: 6 months from the new elections. - Deactivation period for the Executive: 3 months from the new elections.

If activated by the President: - Deactivation period for the Executive: 12 months from the new elections. - Deactivation period for the Legislature: 3 months from the new elections.

The numerical parameters of this article (6 months, 12 months, 3 months) may be modified by Level N6 consensus.

Article 41: Serious Breach by the President

When the President commits a serious breach of final judicial resolutions, a process may be initiated to call new presidential elections.

Initiative: 1. Legislative route: Level N1 consensus of the Legislature. 2. Popular route: a group of at least 10% of the national electoral roll.

Resolution: The Supreme Court directly resolves the process and determines whether the breach constitutes any of the grounds established in this article. The decision of the Supreme Court is subject to a single appeal (article 34) by any citizen with the right to vote.

Grounds for serious breach: 1. Refusing to execute a final judgment of the Supreme Court. 2. Such other grounds as may be established by ordinary legislation.

Ground 1 may not be eliminated or modified. The list of additional grounds established by ordinary legislation may be expanded or contracted by Level N4 consensus.

The numerical parameters of this article (N1, 10%) may be modified by Level N6 consensus.

If the Supreme Court declares a serious breach by final resolution, new presidential elections are called in accordance with the deadlines and succession rules of article 26. The interim officeholder exercises exclusively the limited functions described in the second scenario of article 26.

SUBTITLE 5: JUDICIAL LEGITIMACY REVIEW

Article 42: Constitutional Supremacy

This Constitution is the supreme law of the legal order. Any law, regulation, administrative act, or judicial decision that contravenes this Constitution is null and void by operation of law. Constitutionality review is diffuse: any judge, at any level, may declare the inapplicability of a provision in the specific case if they consider it contrary to this Constitution. This declaration of inapplicability may be appealed in accordance with the layered system established in article 43.

Article 43: Constitutionality Review Process

Any citizen with the right to vote may challenge the constitutionality of any enacted law before the courts, regardless of how much time has passed since its enactment. Each law may be submitted for constitutional review once every 6 years, counted from the filing of the challenge. Each citizen may file a challenge or a group of challenges once every 4 months. Challenges may be filed individually or in groups of up to 10 laws, with an independent verdict for each law in the group. Only one active constitutional review process per law may exist at any given time; if a package contains a law already under review, the package is admitted but that law is excluded. The maximum number of groups under simultaneous review is 10, which establishes a limit of 100 laws under simultaneous constitutional review. The challenge is filed before a court of first instance and resolved according to the following layered system:

1. First Instance: The court may declare inapplicable a provision it considers contrary to this Constitution. This declaration has effect only for the specific case. The court must provide a detailed statement of the reasons why it considers the provision to contravene the Constitution. Any citizen with the right to

vote may appeal this decision to second instance within a maximum of 2 weeks from the first instance decision, regardless of their participation in the initial proceeding. Once this period expires without appeal, the first instance decision becomes final.

2. Second Instance (Cassation): The second instance court reviews exclusively the legal reasoning applied. It may confirm the inapplicability, revoke it, or qualify its terms. If it confirms the inapplicability, the provision becomes inapplicable for all cases. Any citizen with the right to vote may appeal this decision to the Supreme Court within a maximum of 2 weeks from the second instance decision. Once this period expires without appeal, the second instance decision becomes permanent.
3. Supreme Court: It is the ultimate interpreter of the constitutionality of laws in the judicial order. Its decisions are binding on all courts in the country. When it declares a provision unconstitutional, that provision becomes inapplicable for all cases. The decision of the Supreme Court may only be reversed through popular annulment in accordance with article 46 or through constitutional reform. The Legislature may enact a new law with substantive changes that addresses the constitutional problem identified.

The right of appeal is exercised in accordance with article 34: per case and per level. When multiple parties challenge the constitutionality of the same provision at the same level, the challenge filed first has priority; the others are incorporated into the proceeding already initiated. The case ascends only once, not once for each challenge.

The numerical parameters of this article (6 years between reviews, 10 laws per group, 10 simultaneous groups, 2 weeks appeal period, 4 months waiting period per citizen) may be modified by Level N5 consensus.

Article 44: Criminal Liability Arising from the Constitutionality Review Process

Criminal liability of legislators: If a law is declared unconstitutional at any judicial level and the decision becomes final, the legislators who voted in favor of that law shall be subject to criminal sanction in accordance with article 45.

Criminal liability of judges for error in constitutionality review: A judge who rules on the constitutionality of a law assumes personal responsibility for their decision, in accordance with the following rules: 1. Mechanism of demonstration: Error is demonstrated through the review procedure established in article 43, subject to its deadlines and limitations, applied to the constitutional text and configurations in effect at the time the decision was issued. 2. Window of liability: The judge is liable if within 10 years following their decision it is demonstrated that it was erroneous. A review proceeding initiated within this window is resolved even if the window has expired at the time of the judgment. 3. Severity: Sanctions shall be of similar or greater severity than those applicable to legislators, in accordance with article 45. For Supreme Court justices, the minimum sanction for a demonstrated error is 20 years of imprisonment. This sanction is constitutional and may be modified during the Bootstrap Process by Level N3 consensus. Outside the Bootstrap Process, its modification requires Level N5 consensus.

Article 45: Sanctions for Legislators and Judges

The specific sanctions for legislators and judges of courts below the Supreme Court are established during the Bootstrap Process by Level N3 consensus and must be deterrent. The default sanction for legislators is the payment of 10 years of their salary in effect at the time of the sanction, as a debt. Sanctions for ordinary popular annulment are established in the same manner but must be of lesser severity than those for unconstitutionality.

If the sanction is economic, the fine may only be paid through capital obtained from the personal labor earnings of the sanctioned individual; payment through investments, donations, sale of assets, or any other means other than personal labor is not permitted.

Subsequent modification of these sanctions requires Level N5 consensus.

SUBTITLE 6: POPULAR ANNULMENT

Article 46: Popular Annulment of Judicial Decisions

The people may annul any judicial decision that has become final, regardless of the level at which it acquired finality, through popular annulment in accordance with the hierarchy of legitimacy established in article 1.

Call:

1. Reflection period: At least 3 months must elapse since the judicial decision became final.
2. Scope and thresholds:
 - a) Constitutional: Applies to judicial decisions on the constitutionality of laws. Initiating group: at least 10% of the national electoral roll. Signatures required: Level N1 of the national electoral roll.
 - b) Ordinary: Applies to ordinary non-constitutional judicial decisions. Initiating group: at least 30% of the national electoral roll. Signatures required: of the national electoral roll, a consensus level equal to the highest level that was required to approve any of the laws on which the judicial decision was based, with a minimum of Level N1 in accordance with article 23.

Signature collection:

Signature collection must be formally declared before it begins. Only signatures collected after the declaration are counted; prior signatures are not valid. The maximum period to complete the collection is 2 years from the declaration. Only signatures of living citizens with the right to vote at the time of verification are counted; if a signatory dies, their signature ceases to be valid. Seven days after the corresponding signature threshold is reached, the judicial decision is annulled.

Effect:

When popular annulment reaches the established threshold:

1. The judicial decision is annulled.
2. In the constitutional domain: the provision that had been declared unconstitutional regains its force (or its nullity is confirmed, depending on the direction of the annulment).
3. Popular annulment does not constitute binding precedent: future disputes over similar provisions must be resolved again through the ordinary judicial process, unless a new popular annulment occurs.
4. The judge responsible for the annulled decision is subject to criminal sanction in accordance with article 45, of lesser severity than those established for cases of unconstitutionality in article 44.

The numerical parameters of this article (3 months of reflection, 10% and 30% of the national electoral roll, 7 days after reaching the threshold, 2 years to complete signature collection) may be modified by Level N6 consensus.

SUBTITLE 7: FISCAL OVERSIGHT AND TRANSPARENCY

Article 47: Budgetary Transparency

All public budgets are published in a publicly auditable system. Publication includes:

1. Approved budget disaggregated by line items.
2. Budget execution updated every 30 days.
3. Comparison between budgeted and executed amounts.
4. Justification of significant deviations.

Any citizen or person with tax residency in the country may access this information free of charge. Budgetary transparency admits no exceptions other than those expressly established in article 53.

Article 48: Public Audit

Any citizen has the right to audit the public data recorded in the systems established in this Constitution. The State must provide an accessible, free, and comprehensible inquiry process. Within a maximum of 30 days after the inquiry, the requested information must have reached the citizen. Failure to meet this deadline shall always entitle the requester to seek judicial remedy before the Judicial Branch.

SUBTITLE 8: ARMED FORCES**Article 49: Commander in Chief**

The President of the Republic is the Commander in Chief of the Armed Forces. The President exercises direct operational command of all military branches. This command is subject to the constitutional limits established in articles 50 through 54 inclusive.

Article 50: Declaration of War

The declaration of war is proposed by the President and requires the approval of the Legislative Branch by Level N5 consensus. Immediate defense against attack or invasion does not require a prior declaration of war (article 51). The declaration of war may be revoked on the initiative of the President or the Legislative Branch, provided the national territory is not under attack. In both cases, revocation requires the approval of the Legislative Branch by Level N3 consensus.

Article 51: Military Operations Without a Declaration of War

1. Defense of the national territory against an actual or imminent armed attack: The President may and must order immediate defense without prior legislative approval. The President must notify the Legislature immediately after ordering the defense. Ordering a defense when no actual attack exists constitutes an act of equal gravity to those described in article 52 and is punished in the same manner.
2. Rescue of citizens in a situation of imminent danger abroad: The President may order the operation without prior legislative approval. The President must notify the Legislature immediately after ordering the operation. If the operation extends beyond 30 days and involves a significant use of force, it requires legislative ratification by Level N3 consensus.

The numerical parameters of this article (30 days, N3) may be modified by Level N5 consensus. During the Bootstrap Process, by Level N3 consensus.

Article 52: Accountability for Secret Operations

The President may order secret military operations without prior legislative approval. If such an operation results in:

1. Military disaster (significant loss of life or resources).
2. Initiation of an unauthorized armed conflict.

If a secret operation of this scope is discovered or announced, the Legislative Branch may, by Level N1 consensus, initiate judicial proceedings before the Supreme Court for the application of the following punishment: the President is held personally accountable through the amputation of one hand. The decision of the

Supreme Court is appealable by any citizen with the right to vote in accordance with the ordinary appeal procedure established in article 34.

The default punishment may be modified during the Bootstrap Process by Level N3 consensus, provided the alternative punishment is of a personal and physical nature. The numerical parameters of this article (N1) may be modified by Level N5 consensus.

Article 53: Military Budget

The budget of the Armed Forces is approved annually by the Legislature through the ordinary budget approval procedure. All military expenditure is recorded in a publicly auditable system, allowing permanent citizen audit.

Exceptions:

1. Intelligence items and classified operations: They are recorded in aggregate form (without operational detail) and are audited by a specific legislative commission with classified access.
2. Sensitive equipment: The specific location and capabilities may be classified, but total costs must be public.

Article 54: Separation of Forces

The Armed Forces are organized into separate branches:

1. Army: Land defense.
2. Navy: Naval and coastal defense.
3. Air Force: Air and space defense.

The chiefs of each branch are appointed and removed by the President. The President may not appoint themselves as branch chief. After removing a branch chief, the President must appoint a replacement. The replacement may not be removed until 1 month has elapsed since their appointment, except during a state of exception. The replacement may not be the person removed, nor a relative up to the second degree of consanguinity or affinity of the President, nor a person currently serving as Vice President or minister. The Legislature may revoke the appointment of any military chief by Level N4 consensus.

The Legislature may create new branches by Level N3 consensus. The three branches established in this article may not be eliminated or merged; modification of this protection requires Level N5 consensus.

SUBTITLE 9: STATES OF EXCEPTION

Article 55: States of Exception - Principle

States of exception may only be declared, in accordance with article 56, in the face of serious crises that cannot be managed through ordinary means. Declaring a state of exception without a genuine crisis constitutes a serious crime, punishable by default with 10 years of imprisonment. This parameter may be modified during the Bootstrap Process by Level N2 consensus and subsequently by Level N3 consensus. By default, there are three types of states of exception, established in article 56. Every state of exception is subject to the six mandatory limits established in articles 58 through 63 inclusive. No crisis, however grave, authorizes the suspension of these six limits.

Article 56: Types of States of Exception

Three types of states of exception are established, classified according to the scope of the crisis. Each type specifies the rights that may be temporarily restricted within the affected zone. Outside of the rights expressly mentioned, all others remain in force. All exceptional powers cease automatically upon the termination of the state of exception, restoring all conditions to the prior state. In all cases, they are subject to the six limits of articles 58 through 63 inclusive.

1. Natural and Technological Scope:

- Causes: Natural catastrophe, health crisis, technological disaster (nuclear accident, power outage of more than 48 hours in duration, toxic spill, or other events of equivalent severity).
- Declaration: Level N1 consensus of the Legislature, with absolute priority on the agenda. In case of imminent danger to life, it is activated automatically.
- Restrictable rights: Defined in the Bootstrap Process.
- Temporary powers: Defined in the Bootstrap Process.

2. Domestic Security Scope:

- Causes: Multiple terrorist attacks, attempted coup d'état.
- Declaration: Automatic activation. Legislative ratification within 7 days with N2 consensus; without ratification, it is automatically revoked.
- Restrictable rights (exclusively for suspects): Defined in the Bootstrap Process.
- Temporary powers: Defined in the Bootstrap Process.

3. War Scope:

- Causes: Declared war, foreign invasion, armed insurgency.
- Declaration: Automatic activation without prior legislative approval.
- Restrictable rights of attackers of the nation: All fundamental rights.
- Temporary powers: Transfer of civilian functions to military authority in the affected zone, plus those defined in the Bootstrap Process.

Article 57: Configurability of States of Exception

All variables of article 56 are defined during the Bootstrap Process (Title III) with N1 consensus, except those explicitly excluded.

After the Bootstrap Process: modification of restrictable rights requires Level N4 consensus; modification of causes, declaration, temporary powers, and the creation of new types of states of exception requires Level N5 consensus. Legislation that develops the specific grounds for each cause requires Level N3 consensus to be enacted and is subject to the popular annulment exception established in article 6.

The restriction of all fundamental rights of attackers of the nation (War Scope) is not configurable during the Bootstrap Process; its subsequent modification requires Level N6 consensus. The transfer of civilian functions to military authority (War Scope) is not configurable during the Bootstrap Process; its subsequent modification requires Level N6 consensus.

Article 58: Limit 1 - Temporal Limit

By default, the state of exception ends when the condition that gave rise to it disappears. If the condition disappears, the state of exception ceases automatically and immediately, without the need for a legislative vote.

If the condition persists, the Legislature must mandatorily pronounce on the continuation of the state of exception at 6 months from its activation. Thereafter, renewal follows a scheme of increasing consensus and decreasing intervals:

- First renewal (at 6 months): Level N1 consensus. Next review in 2 months.
- Second renewal: Level N2 consensus. Next review in 1 month.
- Third renewal: Level N3 consensus. Next review in 1 month.
- Fourth renewal: Level N4 consensus. Next review in 1 month.
- Fifth renewal and subsequent: Level N5 consensus. Review every 2 weeks.

If in any renewal the required consensus is not reached, the state of exception ceases automatically.

Article 59: Limit 2 - Territorial Limit

The state of exception may only be applied in the geographic zone directly affected by the crisis that gives rise to it. The rest of the national territory maintains full constitutional normality. If the crisis is national in scope, the declaration of the state of exception applies to the entire national territory.

Article 60: Limit 3 - Material Limit and Prohibition of Decrees

Exceptional powers are limited to a closed list specific to each type of state of exception in accordance with article 56. This list is established and modified in accordance with the consensus levels of article 57. Any measure that exceeds the powers established in the closed list is null and void by operation of law and constitutes abuse of authority. In case of abuse of authority, the Legislature may revoke the state of exception at any time by Level N1 consensus.

The Executive Branch may issue decrees exclusively during a state of exception declared in accordance with article 55. Outside of a state of exception, decrees are absolutely prohibited. Decrees issued during a state of exception are strictly temporary, cease automatically upon the termination of the state of exception, and under no circumstances may they annul or modify any article of this Constitution.

Article 61: Limit 4 - Parliamentary Oversight

During any state of exception, the Legislative Branch functions normally. The mutual destruction mechanism (articles 39 and 40) is suspended during the state of exception. Scheduled elections are postponed only in case of objective physical impossibility in accordance with article 63. This suspension also applies to the 45-day deadline for new presidential elections established in article 26 (presidential succession); while the suspension lasts, the usurpation penalty of article 26 is not applicable. The Legislative Branch determines by Level N1 consensus when objective physical impossibility has ceased. Once determined, elections are held within a maximum of 45 days in accordance with article 26 and the usurpation penalty is reactivated.

Article 62: Limit 5 - Judicial Oversight

The Judicial Branch maintains all its functions during states of exception. In particular:

1. It may review the legality of any measure adopted during the exception, including the legality and constitutionality of the declaration of the state of exception itself.
 2. Any person whose rights applicable in the context of the state of exception (in accordance with article 56) are violated may petition for judicial proceedings.
 3. Any citizen with the right to vote may petition a first instance judge for review of the legality and constitutionality of the declaration of the state of exception.
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Article 63: Limit 6 - Absolute Prohibitions

During any state of exception, the following are absolutely prohibited:

1. Modifying this Constitution through the reform procedures (articles 67 through 69 inclusive).
2. Modifying electoral law or the rules governing the conduct of elections.
3. Postponing elections except in cases of objective physical impossibility (e.g., active war zone, destruction of electoral infrastructure).
4. Postponing the commencement of judicial proceedings except in cases of objective physical impossibility (e.g., active war zone, destruction of judicial infrastructure).

Any act that violates these prohibitions is null and void by operation of law, without the need for a judicial declaration.

Article 64: Post-Exception Accountability

Following the termination of any state of exception:

1. The Executive must submit a public report within a maximum of 60 days, detailing all measures adopted, their justification, results, and costs. Any citizen may access this report.
2. If a citizen reports irregularities, a first instance judge must order an independent audit of the measures adopted.
3. Officials who have abused exceptional powers or violated the six limits (articles 58 through 63 inclusive) may be criminally prosecuted. The state of exception does not exempt from liability for abuses.

Failure to submit the report within the deadline constitutes in itself an irregularity that must be prosecuted.

Article 65: Automatic Termination of the State of Exception

The state of exception terminates automatically when any of the following circumstances occurs:

1. Disappearance of the condition that gave rise to it (article 58).
2. Non-renewal by the Legislature at any of the mandatory reviews (article 58).
3. Revocation by the Legislature in case of abuse of authority (article 60).
4. A final judicial declaration that the state of exception was declared without a genuine crisis in accordance with article 55.

Termination does not require any additional affirmative act: it operates automatically. Following termination, all exceptional measures cease immediately and full constitutional normality is restored.

End of Title IV

TITLE V: CONSTITUTIONAL REFORM AND PROTECTION

Article 66: Entrenched Clauses - Inviolable Core

The following constitutional principles are entrenched clauses: they may not be eliminated through the ordinary reform procedure established in articles 68 and 69. They may only be modified through the special procedure established in article 67:

1. Popular Sovereignty (article 1): Power resides in the people through the mechanisms of direct single-member representation in small districts and revocability of the mandate of the individual to whom power has been delegated.

2. Hierarchy of Democratic Legitimacy (article 1): The people may oppose decisions of any delegated power in accordance with the procedures established in this Constitution. The delegated powers are equal among themselves and subject to reciprocal oversight.
3. Universal Suffrage (article 4): The right to vote of every citizen of legal age.
4. Voting Guarantees (article 5): The vote is secret, non-delegable, verifiable, and auditable. None of these properties may be eliminated except through this procedure.
5. Guarantee of Popular Annulment (article 6): The right to create mechanisms for the direct popular annulment of legislative decisions may not be suppressed.
6. Equality Before the Law (article 8): No member of the branches of government enjoys any immunity or legal privilege by reason of their office.
7. Official Language (article 9): The State must have at least one official language with mandatory status in legislation, justice, administration, and education.
8. Separation of Powers (article 20): Independence of the Legislative, Executive, and Judicial branches.
9. Balance of Powers (article 39): The mutual destruction mechanism between the Legislature and the Executive may not be eliminated.
10. Constitutional Supremacy (article 42): This Constitution is the supreme law of the legal order.
11. Right and Procedures for Constitutional Reform (articles 67 through 69 inclusive): The people always retain the right to reform this Constitution through the established procedures. The reform procedures may not be suppressed.
12. Fundamental Rights of the Democratic System (article 71): The rights established as necessary conditions for the functioning of democracy may not be eliminated.

Article 67: Procedure for Reform of Entrenched Clauses

The reform of any of the entrenched clauses established in article 66 requires approval by popular referendum with Level N5 consensus of valid favorable votes and minimum participation of 75% of the national electoral roll. The referendum may be called by two routes:

1. Legislative route: Approval by Level N6 consensus of the Legislative Branch.
2. Popular route: Initiative of Level N1 of the citizens with the right to vote.

Double vote:

The reform requires two separate votes:

1. First vote: Approval of the reform proposal with the majorities established in this article.
2. Reflection period: A mandatory period of 2 years from the first vote.
3. Second vote: Confirmation of the reform with the same majorities.

If the second vote does not reach the required majorities, the reform proposal lapses and may not be resubmitted until the waiting period has elapsed.

Waiting period:

Once the procedure for reform of an entrenched clause has been completed, regardless of whether the reform is approved or rejected, that same clause may not be submitted to a new reform procedure until 21 years have elapsed since the last vote of the procedure.

Protection of parameters:

The parameters of this article may be modified through the procedures established in this same article.

Article 68: Right of Ordinary Reform

Every part of this Constitution, except the entrenched clauses established in article 66, may be reformed through the following procedure:

1. Legislative route: Approval by Level N4 consensus of the Legislative Branch.
2. Popular route: Approval by referendum with Level N1 consensus of valid votes and minimum participation of 50% of the national electoral roll.

When an article contains parameters with a specific level of protection above N4, the reform of the article as a whole requires a consensus equal to or greater than the highest level of protection of the parameters it contains.

Ordinary reform enters into force 1 week after approval.

Article 69: Initiative for Ordinary Reform

The initiative to propose ordinary reforms in accordance with article 68 may come from:

1. Legislative initiative: 33% of the members of the Legislative Branch.
2. Popular initiative: 10% of the national electoral roll through a petition in a publicly auditable system.

Both routes of initiative require final approval in accordance with the majorities established in article 68.

Article 70: Supremacy of Constitutional Mechanisms

No fundamental right, whether essential (article 71) or complementary (article 72), may be invoked to block, annul, or circumvent the mechanisms, conditions, and limits established in this Constitution.

End of Title V

TITLE VI: RIGHTS AND PROTECTIONS

Article 71: Fundamental Rights of the Democratic System

The following rights are necessary conditions for the functioning of the democratic mechanisms established in this Constitution. These rights apply insofar as they guarantee the functioning of said mechanisms, and under no circumstances may they be used to alter, block, annul, or circumvent the mechanisms, conditions, and limits established in this Constitution as described in article 70.

1. Political expression: Every person has the right to express, disseminate, and debate political ideas without censorship.
 2. Information: Every person has the right to access information and to disseminate it.
 3. Political assembly and association: Every person has the right to assemble and associate peacefully for political purposes, including the organization necessary to exercise the mechanisms of recall (articles 11 and 12), popular annulment (article 46), and reform initiative (article 69).
 4. Personal integrity: No person may be subjected to physical harm by reason of their political activity or their exercise of the vote.
 5. Privacy of the vote and deliberation: Every person has the right to have their vote and their process of political deliberation remain private.
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Article 72: Complementary Fundamental Rights

During the Bootstrap Process in accordance with Title III, the people shall define by Level N2 consensus the catalog of fundamental rights complementary to those established in article 71. This catalog may include, among others: the right to general privacy and solitude, to property, to the trade of goods and services, to the practice of religion, to recreational and leisure activities, to reproduction and family life, to work and profession, to education, to private communication, to state protection, to freedom of movement, and to life.

Once adopted, the addition, modification, or elimination of any right from the catalog requires Level N5 consensus.

End of Title VI

Part 2: Argumentation and Philosophy

INTRODUCTION: DESIGN PHILOSOPHY

The problem this Constitution solves

Most current “democracies” are elective oligarchies disguised as democracies. The appearance exists: periodic elections, parliament, a separation of functions that pretends to be a separation of powers. The substance does not: parties strongly or completely control candidate selection, financing, and media. The result is an illusion of choice managed by elites. An honest aristocracy is preferable to a false democracy.

Current constitutions are many and diverse: each country has its own, with its own principles, history, and compromises. Attempting to reform them one by one would be a titanic and endless effort. But power dynamics do not understand specific cultures. The tendency to concentrate power, to corrupt institutions, to capture control mechanisms: these are human constants, not cultural ones. If the problem is universal, the solution can be too. This Constitution seeks to be that solution: a reference framework agnostic to any historical or cultural context, based solely on how power works among human beings.

This Constitution does not assume good will. It assumes the worst case: an actor with unlimited resources attempting to capture the system. Every mechanism is designed so that this worst case is as expensive, difficult, and risky as possible. It is a security audit of democracy, not a manifesto of hope.

Defensive mindset

The design follows the mindset of a security hacker: not asking “will it work if everyone cooperates?” but “how will it break, and how would it self-repair if someone attacks?” Every mechanism is subjected to the question: what is the attack vector? How much does it cost to exploit? How is the abuse or attack detected?

Corruption cost framework

Central principle: every system has a price. The design must maximize that price. There is no moralizing about whether people become corrupt or not; it is assumed they can be bought, and the design ensures that the cost of buying them is as high as possible within the natural and social limits of human beings. This is quantified through the 25th percentile of income (P25) as an economic proxy of the cost of influence; the rationale for this decision is explained further on.

Democratic trilemma

Analogous to the blockchain trilemma (decentralization, security, scalability), democracy faces: Democracy <-> Efficiency <-> Stability. All three cannot be maximized. This Constitution chooses:

1. Maximize democracy (popular control is the ultimate source of legitimacy).
2. Then efficiency (representatives manage day-to-day affairs).
3. Then stability (speed can be sacrificed for robustness).

Conscious theoretical influences

- Antonio Garcia Trevijano: single-member districts, runoff elections, revocability, mutual assured destruction, no party financing. This Constitution largely adopts his framework and adds specific details to complete it.
- Robert Michels: Iron Law of Oligarchy. Every organization tends to concentrate power. The design works against this.
- Decentralized systems design: the author is a software engineer and blockchain hacker. The design mindset of this Constitution derives largely from the engineering of distributed systems resistant to attacks: Byzantine fault tolerance (the system works even if some nodes are malicious), elimination of single points of failure (no single body concentrates all power), consensus mechanisms with variable thresholds (levels N1-N6), public auditability and verifiability (budgetary transparency, verifiable voting), and probabilistic immutability of fundamental rules. Additionally, certain ideas from operating systems such as a bootstrap process also stem from this influence.
- Cheerfulness: the author's own philosophy. Its central thesis is that happiness – not freedom – is the deepest driver of human behavior, and that abuse has six natural sources (ignorance, selfishness, laziness, and their counterparts of capacity). The corruption cost framework, the argument of the ever-increasing complexity of human wisdom, and the conclusion that democracy is the natural destination of power dynamics all originate from this work.

Any coincidence between the principles of this Constitution and those of other thinkers, philosophers, or political theorists not mentioned here is exactly that: coincidence. My apologies if I have not named them; I am simply not aware of them.

The design starts from first principles (how power works, how a system is attacked, how much it costs to corrupt it) and not from extensive reading of pre-existing theoretical frameworks.

That the conclusions converge with those of other thinkers neither invalidates nor validates the design; it simply suggests that the fundamental problems of power tend to produce similar solutions when analyzed with rigor.

WHAT IS DEMOCRACY AND WHY A DEMOCRACY

Before explaining each design decision of this Constitution, it is worth establishing a shared starting point between reader and writer: what we understand by democracy, why we should bet on it, and what its real limits are.

Definition

The word democracy comes from the Greek: demos (people) and kratos (power). Power of the people. But this etymology is insufficient as an operational definition. “Power resides in the people” is a nice declaration that says nothing about how the system actually works.

An operational definition of democracy requires three elements:

1. Open competition for power. Any group of citizens, by the mere fact of being citizens, can organize to aspire to manage the State. No approval from existing groups is needed, nor must they follow predetermined internal structures. The only requirement is being citizens. This is analogous to perfect competition in economics: anyone who can manufacture a better product can access the means to create it. In democracy, anyone who has a vision for their society can create a group to reflect it and present it to their neighbors.

2. Real separation of powers. The State has three natural functions: to legislate (create the rules), to execute (apply them), and to judge (resolve conflicts when the rules are broken). In a democracy, these three functions are exercised by bodies independent of each other, with independence of appointment and financing. Without this separation, democracy collapses into oligarchy: a group that simultaneously legislates, executes, and judges has no limit to what it can do. It may collapse into a plutocratic oligarchy, or a technocratic one, or both at once; regardless of the system, it collapses into oligarchy, or even dictatorship.

3. Real representation with accountability. In large societies, direct democracy is unfeasible for daily management. Representatives are needed. But representation is only democratic if it meets two conditions: the representative is directly elected by a community small enough to know them (single-member districts), and that community can dismiss them at any time if they fail to deliver (revocability). Without these two conditions, the representative serves the party that placed them on the list, not the citizen who voted for them. For power would be transferred and not delegated, thus extracting the *kratos* (power) from the *demos* (people).

In more technical terms: democracy is a coordination protocol for power dynamics whose result is the most optimal possible partition of powers within the State. That is, the protocol that minimizes the centralization of power in any individual actor or groups and maximizes the dynamism of the functioning of the power structure.

Arguments for and against democracy

In favor

Democracy produces the richest feedback loop All human progress is based on feedback loops: act, observe the result, correct, act again. We learn this way. Science works this way. Evolution works this way.

In a dictatorship, the feedback loop is poor: one person decides, and information about whether that decision was good or bad arrives filtered, late, and distorted by fear. In an oligarchy, the loop is somewhat richer but remains limited to the group in power. In a democracy, the loop includes the entire society: millions of people evaluating decisions, proposing alternatives, correcting errors. The more diverse perspectives participate in the loop, the better reality is understood and the better it can be responded to.

Democracy reflects human biology The human brain cannot process all the information it receives. Its solution is to fix some variables (beliefs, habits, certainties) while varying others (exploration, trial and error). The fixed variables provide stability; the free variables provide adaptability.

Every power system replicates this mechanism at the social scale: laws are the fixed variables (stability and predictability) and the mechanisms of political change are the free variables (adaptation). This is true in dictatorships, oligarchies, and democracies alike. The difference is the richness with which each system allows the dynamic part to be exercised.

In a dictatorship, one person changes the variables. In an oligarchy, a small group. In a democracy, periodic elections allow the entire society to participate in deciding which fixed variables no longer work and must change, and revocability adds an emergency mechanism when change cannot wait for the next cycle. By the same feedback loop argument: the more diverse perspectives participate in the process of fixing and unfixing variables, the richer the result. Democracy is the system that best connects the static stability our nature needs with the dynamism that enables adaptation.

Decentralization minimizes abuse All power, given enough time, tends toward abuse. This is not cynicism: it is a constant empirical observation throughout human history and in computer cybersecurity systems, designed and operated by humans. The question is not “will they abuse?” but “how much damage can they do when they abuse, and how can we minimize the damage done and repair it as much as possible if they manage to abuse?”

The answer depends on how much power each individual concentrates. In a dictatorship, a single individual concentrates everything: the potential damage is maximum. In a democracy, power is distributed among

many independent actors: district legislators, a separate executive, an independent judiciary, and a people with the capacity for direct intervention. The damage any individual actor or group can do is limited by the others. Abuse is not eliminated – abuse is a natural human phenomenon; its scope and impact are systematically minimized.

The ever-increasing complexity makes democracy inevitable This is the argument of the ever-increasing complexity of human wisdom. Each generation inherits the accumulated knowledge of its predecessors and adds its own. The complexity of human societies never stops growing: more technology, more interconnection, more variables to manage. A centralized protocol that worked for a village of 500 people does not work for a city of 5 million. A protocol that worked in the 18th century does not work in the 21st.

Centralized and static systems have a ceiling of complexity they can manage. When society exceeds that ceiling, the system fractures: in the form of violence, silent misery, or unsustainable social pressure. Democracy, by distributing decision-making and allowing periodic renewal, has a higher complexity ceiling. It is not infinite, but it is significantly higher.

Put another way: although more centralized systems may be the temporary solution that works now and worked in the past, sooner or later they stop working. The increasing complexity of human knowledge is a curse (or a blessing) that inevitably pushes toward more decentralized and dynamic protocols capable of handling all variables in a more adaptive way.

The separation of powers prevents the natural drift toward tyranny Without separation of powers, a democratically elected group that controls the entire State will end up, by natural tendency, modifying the rules to stay in power. Not necessarily out of malice, but out of incentives: whoever has the power to change the rules and the incentive to retain power will end up changing the rules in their favor. The separation of powers breaks this cycle: whoever makes the laws neither executes them nor interprets them, whoever executes them neither judges whether they are followed nor creates them, and whoever judges neither writes them nor enforces them.

Democracy enables specialization In a centralized system, the ruler must simultaneously be an expert in economics, defense, healthcare, education, infrastructure, and diplomacy. Nobody is. In a democracy, the separation of functions allows specialists to emerge in regional management (district representatives) alongside technical specialists (ministries, agencies, private companies and organizations). Each can do their job well because they do not have to do everything. It is the principle of separation of responsibilities improving the production of a product applied to governance.

Against

Giving a gun to a monkey The strongest argument against democracy is also the most uncomfortable: decentralization and dynamism only work well if they are granted to individuals with sufficient capacity to manage them. Giving decision-making power over complex systems to people who do not understand those systems produces bad decisions. In blunt terms, it is like giving a gun to a monkey.

This is not an elitist argument: it is an observation about the relationship between complexity and cognitive capacity. A voter who does not understand how the tax system works cannot rationally evaluate tax proposals. A voter who does not understand geopolitics cannot accurately evaluate – that is, in accordance with their interests – foreign policy decisions. Democracy assumes that the aggregation of millions of partially informed decisions produces a reasonable result. Sometimes it does. Sometimes it does not.

Democracy is harder to design than any other system Designing a functional democratic constitution is a task of extraordinary complexity. A dictatorship does not need to deeply worry about incentive design, power balances, unambiguous drafting, or self-correction mechanisms. A democracy does. A poorly designed democracy naturally collapses into oligarchy or dictatorship, because the actors with the most resources end up exploiting the weaknesses of the design.

The paradox is that the system requiring the most intelligence for its design is precisely the one that grants power to people who may not have that intelligence. A dictatorship is easy to design and hard to live under. A democracy is hard to design and, if well designed, less hard to live under.

The problem of simplified truths As societies grow, no individual can know everything sufficiently well. People demand simple explanations for complex realities. Politicians know this and exploit the demand: they simplify, polarize, reduce multidimensional problems to one-sentence slogans. Citizens align with the simplification that most comforts them, not with the one that best describes reality or best solves a problem. This generates a vicious cycle: the more politicians simplify, the more society polarizes, the wider the gap between rulers and ruled, and the worse democracy functions.

This problem is not exclusive to democracy: it is a problem of all high-complexity human societies, regardless of their power system. But what is relevant here is that democracy does not solve it either. Democracy is not a marvel that solves everything; it is the best available protocol, with real limitations that should be recognized without disguising them.

The oligarchic tendency is inherent to humans Even within democratic systems, organizations tend to concentrate power in few hands. This is the Iron Law of Oligarchy by Michels: every party, union, or movement ends up dominated by an internal elite. In practice, even the best-designed democracies tend toward alternation between two or a few dominant parties. Constitutional mechanisms can limit this tendency but not eliminate it.

Graph theory offers a structural explanation for why. If a society is modeled as a graph where each person is a node and each relationship is an edge, the number of possible relationships grows combinatorially. The simplest case: with 3 people (A, B, and C) there are exactly 3 possible relationships: A with B, B with C, and C with A. It seems manageable. But with 10 people there are 45 relationships. With 100, there are 4,950. With 1,000, there are nearly 500,000. And the possible alliances (subgroups of 2 or more people that can form) grow even faster. No human brain can process that many relationships simultaneously. The result is that, as a group grows, its members need to simplify: delegate, concentrate decisions, create hierarchies. Not out of malice or design flaw, but because the combinatorial complexity exceeds the cognitive limits of the individual. The oligarchic tendency is not a flaw of democracy; it is a consequence of the biological limits of the human brain operating in large groups.

No political system resolves problems between States Democracy works within a State because there is a shared legal framework, a monopoly on violence, and a judicial system that arbitrates conflicts. Between States, none of this exists. There is no world judge, no international law with teeth, no police to enforce it. Internal democracy does not protect against external aggression from a more powerful State that does not respect agreements. Democratic mechanisms have a perimeter: the borders of the State.

Again, this is not a problem exclusive to democracy: no political system – dictatorship, oligarchy, or democracy – solves by itself the relations between sovereign States. But it is worth mentioning so as not to attribute to democracy capabilities it does not have.

Conclusion: democracy as a destination The arguments against are real. Giving a gun to a monkey is a real risk. The difficulty of design is real. The oligarchic tendency is inherent to the cognitive limits of the human brain operating in large groups. Simplified truths and polarization are problems of every complex society that democracy does not solve. And no political system, democratic or otherwise, solves by itself the relations between sovereign States. Democracy is not a perfect system nor does it guarantee good results.

But the arguments in favor are structural. The argument of the ever-increasing complexity of human wisdom inevitably pushes toward more decentralized and dynamic systems. It is not a matter of ideological preference: it is a consequence of how the human species accumulates knowledge. As long as we continue reproducing, preserving, and transmitting knowledge, our societies will do nothing but increase in complexity. And there will be a point – different for each society – at which the more centralized and static protocols simply will not be sufficient. Democracy produces the richest feedback loop, better reflects human biology by connecting

stability with adaptation, systematically minimizes the scope of abuse, and enables specialization in the management of the State.

Democracy is not the perfect system. But it is the protocol of power dynamics with the highest complexity ceiling among those involving a State. It is the one that best scales with the increasing complexity of human societies.

Its main weakness – giving a gun to a monkey – is not solved with less democracy, but with more education. The solution to the monkey with the gun is not to take away the gun; it is to teach it how to use it. This Constitution cannot solve that problem (education is a legislative and personal competence, not a constitutional one), but it can create the framework in which the solution is possible.

Democracy is, ultimately, a destination: not because it is inevitable at every moment and place, but because the natural direction of human complexity in prosperous societies points toward it and ends up requiring it. Societies that do not reach it will suffer more pressure, more friction, and more violence than those that do. It is not a promise of paradise. It is the realization that, among all available power protocols, this is the one that functions least badly in the long run.

With this definition, these arguments, and these limitations in mind, it is time to get into the details. What follows is the explanation of how each article of this Constitution reflects the dynamics described, and why each design decision is the way it is.

Commentary — TITLE I: FUNDAMENTAL PRINCIPLES

Article 1: Popular Sovereignty and Hierarchy of Legitimacy

Sovereignty resides in the people not as a rhetorical declaration, but as an operative principle. The hierarchy of legitimacy establishes two levels: Popular Power above the three delegated powers (Legislative, Executive, and Judicial), which are equal among themselves. It is not a blank check: it is a principle of precedence with rules.

Why are the three powers equal? Because real separation of powers requires that no power prevails over another. If the Legislative could directly nullify judicial decisions, judicial independence crumbles. If the Judiciary could legislate, popular representation loses its meaning. The relationship between the three powers is not hierarchical but one of mutual control: the Judiciary reviews the constitutionality of laws (Article 43) and legislators are criminally liable if they legislate against the Constitution (Article 44). In both cases, being wrong has consequences. This bidirectional accountability replaces hierarchy: there is no need for one to be “above” the other when both pay for their mistakes.

Why only in the cases the Constitution explicitly describes? Here the democratic trilemma comes in: democracy, efficiency, and stability cannot be maximized simultaneously. If the people could nullify any decision of any power at any time, direct democracy would be maximized but the system would be chaotic and inoperable: no government could govern, no judge could judge, no law would have enough stability to be applied. The hierarchy of legitimacy operates only through specific constitutional mechanisms (popular nullification, revocation, elections) precisely to balance popular control with the State’s operational capacity.

Article 2: Consensus Levels

The six consensus levels are the operational tool of the entire Constitution. Each level represents a different degree of social agreement, from simple majority to near-unanimous consensus. In classical terminology: N1 (51%) is simple majority, N2 (60%) reinforced majority, N3 (66%) qualified majority, N4 (75%) supermajority, N5 (85%) reinforced supermajority, and N6 (95%) quasi-unanimity. The constitutional text uses exclusively the percentage as the formal definition, without descriptive labels, to avoid ambiguities such as the one that would exist between “two-thirds” (66.67%) and “66%.” The idea is that more transcendental decisions require broader agreements: changing an ordinary law requires N1, but modifying an entrenched clause requires N6. The formal definition in its own article avoids ambiguities: every time the Constitution says “Level N3 consensus,” the meaning is exact and does not depend on interpretation.

The parameters protected at N6 are those that define the fundamental structure of the electoral system and the mechanisms of direct democratic control: how one is elected, how one is recalled, and how one is removed. Modifying these parameters alters the balance of power between the people and their representatives, which is why they require quasi-unanimity. The parameters protected at N5 are structural but not electoral: judicial composition, requirements for access to judicial positions, constitutional cycles. The remaining parameters are governed by the ordinary reform procedure (N4, Article 68).

Article 3: Constitutional Subjects

The Constitution needs precise vocabulary for its subjects, just as a program needs well-defined types. Without this definition, every article that says “citizen” is ambiguous: does it include a tourist? A minor? A resident without nationality? Terminological ambiguity is an interpretive attack vector: a creative court can expand or restrict the scope of a right depending on how it interprets “citizen.”

The three categories (person, citizen, citizen with the right to vote) are inclusively cascading: every voter is a citizen, every citizen is a person, but not the reverse. This allows rights such as personal integrity to apply to every person (including tourists, refugees, residents without nationality), while political capacities such as voting or initiating revocations are reserved for citizens with the right to vote.

The approach is “everything by default, explicit exceptions”: each category enjoys all the rights of its level unless expressly restricted. This minimizes the necessary text and reduces the interpretive attack surface: if the Constitution does not explicitly state that a right is restricted for a category, it is not.

The clause on criminal convictions avoids creating a fourth category of subject (“criminal”). A convicted person does not lose their status as a person or citizen: they lose specific rights determined by law and the sentence, within constitutional limits. This is analogous to a permissions system in software: the user is not deleted, specific permissions are revoked.

A theoretical threat to keep in mind: nationality is defined “in accordance with the law,” which means the Legislature could tighten nationality requirements to indirectly reduce the electorate without technically “restricting suffrage” (Article 4). This Constitution does not define who is a citizen – it delegates this to law. This is a slow attack vector: each individual tightening seems reasonable, but cumulatively they exclude sectors of the population. Constitutionality review (Articles 42-43), equality before the law (Article 8), and the entrenched protection of universal suffrage (Article 66) make this path difficult, but do not eliminate it entirely. It is a conscious limitation: defining nationality in the Constitution would make it rigid in the face of changing demographic realities; delegating it to law makes it flexible but vulnerable. Flexibility with counterweights is chosen.

Article 4: Universal Suffrage

Suffrage cannot be restricted. The justification is direct: by the same feedback loop argument, the more citizens participate in the democratic process, the more perspectives enter the system, the more information is processed, and the better the collective capacity to find optimal solutions. Restricting suffrage impoverishes the loop. Any exception (such as judicial declarations of incapacity) opens the door to arbitrary restriction of voting on political grounds: a corrupt judge could declare “incapable” thousands of voters in a key district. The risk of opening that door exceeds the benefit of closing it.

In general terms, opening the door to certain conditions that permit excluding voters is an extremely difficult door to monitor in a democracy. Human attention is a limited resource: citizens cannot pay attention to everything being legislated simultaneously. And in the current era, with internet and social media addiction, it is easier than ever to distract the population while legislating to gradually restrict who can vote and who cannot. It is a slow and silent attack vector: each individual restriction seems reasonable, but cumulatively they extract power from the demos (the people). It is preferable – and I would say vital – not to open that door at all. Or in any case, under Level N6 consensus conditions, which is precisely designed to ensure that any change of this kind is the result of a deep social consciousness and not a momentary outburst of anger or manipulation through social media or other means.

Articles 5 and 17: Secrecy, Vote Verifiability, and Remote Voting

Three simultaneous properties: secrecy (nobody knows what you voted), verifiability (you can verify that your vote was counted), and public auditability (anyone can verify the process). These three properties are the minimum characteristics of any legitimate voting system, both in-person (Article 5) and remote (Article 17). The Constitution does not prescribe the technology (blockchain, cryptography, paper and ballot boxes) because what matters are the characteristics that the process must meet, not the method by which it meets them. If tomorrow a technology superior to blockchain combined with zero-knowledge cryptography emerges, it can be adopted without constitutional reform. What remains invariant are the required characteristics.

The legitimacy of the vote emerges from the absence of coercion in the process. If the vote is secret, nobody can pressure you to vote a specific way. If it is verifiable, nobody can falsify it without your detecting it. If it is auditable, nobody can manipulate the count without society discovering it. Under these conditions, each individual can look after their interests honestly, and it is this aggregated honesty that strengthens the feedback loop that enriches democratic solutions.

These guarantees would be empty without consequences for their violation. That is why Article 5 establishes an electoral nullity mechanism: if the votes affected by a violation of the guarantees are sufficient to have altered the result, the election is declared null and must be repeated. The threshold avoids two extremes: an attacker sacrificing pawns and preserving a fraudulent result (no nullity), or a saboteur compromising a few votes to force the repetition of an election they lost (automatic nullity without a threshold). Any citizen with the right to vote can initiate the procedure before the Judiciary.

Article 6: Guarantee of Popular Nullification

This article guarantees that a mechanism for direct popular nullification can always exist. It does not impose one (the specific mechanism is defined during the Bootstrap or by subsequent legislation), but it prohibits any power of the State from blocking its creation. It is insurance against legislative capture: if parliament passes laws against the popular interest, the people always have the nuclear option of nullifying them directly, with the same consensus level that was needed to approve them.

The calculation base is deliberately asymmetric: a law approved with N1 of the Legislature (51% of seats) requires N1 of the citizen census (51% of all citizens with the right to vote) to be nullified. This asymmetry is inherent to the difference between representative and direct democracy. Popular nullification is not intended to be a routine mechanism but an emergency valve for deeply unpopular measures whose correction cannot wait for the district-by-district revocation cycle.

Exception for state of emergency legislation The general rule of Article 6 assumes a level playing field between State and people: the same consensus level to approve as to nullify. This symmetry breaks during states of emergency, where the State has expanded powers (restriction of rights, military mobilization, information control) and the people are at a structural disadvantage. Requiring the people to meet the same threshold the Legislature used to approve the emergency legislation (N3, 67% of the census) while the State operates with expanded powers produces a real inequality that contradicts the hierarchy of legitimacy principle of Article 1.

For this reason, the legislation that defines the specific scenarios for states of emergency – what counts as a coup d’etat, who is an “attacker of the nation,” what constitutes armed insurgency – can be nullified by the people with N1 (51% of the census), regardless of the Legislature having approved it with N3. It is a calibrated compensation: the high legislative threshold (N3) makes it difficult for a faction to abuse the definitions, while the low popular threshold (N1) guarantees that the people can correct them if abuse occurs.

Article 7: Right to Territorial Self-Determination

A territory that wants independence is, by definition, a demos: a people with its own identity and will. Even if it is a minority within the State, it is still a group of human beings whose sovereignty deserves respect. Denying the right to self-determination is denying that this demos exists, which contradicts the foundational principle of this Constitution: that sovereignty resides in the people.

Does this mean independence should be easy? No. It is reasonable and debatable to require conditions: that the territory has no pending debt with the State, that it demonstrates self-sufficiency in essential services, that it has its own military defense capacity. These requirements can be demanding. What they cannot be is indefinite in time or resolved precipitously.

Hence the two time limits. The minimum of 21 years (one generation, the same biological cycle as Article 15) guarantees that the independence movement is real and sustained, not a circumstantial impulse. The maximum of 42 years (two generations) prevents indefinite obstruction: a process lasting more than two generations is not a process; it is a denial disguised as bureaucracy.

The key is that the right to initiate the process cannot be suppressed. The conditions are negotiable; the existence of the path is not.

An open question is the level of protection of this article. Currently it is not an entrenched clause, so it can be reformed through the ordinary procedure (legislative N4 or referendum with N1 and 50% participation). This means a legislature with 75% of seats could, in theory, eliminate the right to self-determination. Should it be entrenched? The argument in favor is clear: it is a fundamental right of peoples. The argument against is that territorial independence involves factors that exceed the constitutional – military treaties, economic agreements, international relations – and an excessive level of protection could rigidify situations that require flexibility. For now it remains as ordinary reform, but it is a point that merits debate.

Article 8: Equality Before the Law and Public Accountability

Parliamentary immunity is an oligarchic concept. It says: “we are above the law.” This Constitution rejects it. If you voted for someone, that person is accountable to you and to the law like any other citizen. Criminal prosecution of public officials requires no prior authorization from any body. Moreover: it can be processed on a priority basis, because a corrupt public official causes more damage than a corrupt ordinary citizen.

The elimination of immunity opens a reverse attack vector: massive frivolous complaints as a tool to paralyze inconvenient public officials. This Constitution assumes presumption of innocence: a prosecuted public official continues in office until final conviction, and the regulation of procedural anti-abuse mechanisms (admissibility filters, costs for reckless litigation, sanctions for false complaints) is a matter of ordinary law. Priority processing partially mitigates paralysis by resolving cases against public officials more quickly.

Permanent disqualification for final criminal conviction is established in this article as a general principle applicable to all powers of the State. Its placement in Title I (Foundations) rather than in a specific article of a particular power avoids interpretive ambiguities about its scope. N5 protection prevents a Legislature with ordinary majority (N4) from lowering this consequence to protect convicted allies.

Article 9: Official Language

A State needs a common language to function. Without it, laws are drafted in languages that part of the citizenry does not understand, judicial proceedings become inaccessible, and public administration fragments. The official language is not a cultural imposition: it is operational infrastructure of the State, at the same level as the electoral system or the separation of powers.

Why an entrenched clause? Because the official language is a necessary condition for all other constitutional mechanisms to function. If a Legislature could eliminate the official language through ordinary reform, it could fragment state communication as a tool of control: incomprehensible laws for part of the population, inaccessible judicial proceedings, unequal education. The common language is a democratic equalizer.

The default (the language of the previous regime) guarantees operational continuity from day one of the Transition. Without this default, there would be a gap: in what language is the AOCD published? In what language are the first elections called? The default resolves this without imposing a permanent decision – during the Bootstrap, the Legislature can confirm or change the official language.

The N4 threshold (75%) for modifying the language during the Bootstrap is intentionally high for a Bootstrap decision. Most parameters are configured with N1, but the official language profoundly and practically irreversibly affects the entire population: changing the language of legislation, justice, and education is not a technical adjustment; it is a social transformation. N4 demands a broad consensus reflecting a genuine will, not a circumstantial majority.

Co-officiality through ordinary legislation allows the system to adapt to territorial linguistic realities without weakening the common language. A bilingual territory can operate in both languages, but the official language is always present as a guarantee that any citizen of the country can understand the laws and access justice in any territory.

Commentary — TITLE II: ELECTORAL SYSTEM

Article 10: Single-Member Districts

Single-member representation (one district, one representative) comes from Trevijano's model. Why not party lists? Because lists turn the representative into a servant of the party, not of the electorate. In a list system, the voter chooses a party; in a single-member system, they choose a specific person whom they can hold directly accountable.

Revocation (Articles 11-12) only works with single-member representation: you cannot recall a party, but you can recall an individual. Moreover, punishing or holding a group accountable is inherently more complex and ambiguous than doing so to an individual: responsibility is diluted, blame is spread, the guilty cover for one another, and the result tends toward error and impunity. The most effective, efficient, and controllable delegation is that made to a single person.

This is the difference between delegated power and transferred power. In a list system, the citizen transfers their power to the party: once given, they do not recover it until the next election. In a single-member system with revocability, the citizen delegates their power to a specific individual and can withdraw it. Delegated power remains in the demos; transferred power leaves it. Without single-member districts, revocability is impossible or ineffective, and power is transferred rather than delegated.

A system of 1 alternate per district is recommended to guarantee continuity of representation after a revocation. The details of the alternate system are defined through ordinary law.

Articles 11-12: Revocability and the 75% threshold

Mathematical derivation The 75% is not arbitrary. It is derived from the mechanics of consensus:

- In a normal election, winning requires 51% (consensus that “more than half” means legitimacy).
- To recall someone elected with 51%, it is not enough to activate the 49% that lost.
- You need to convince half of those who did vote for them, preserving the same consensual principle from which we started: that “more than half” is the threshold of legitimacy.
- Mathematics: $49\% + (51\% \times 51\%) = 49\% + 26.01\% = 75.01\%$.
- This is rounded to 75% as a fixed and universal threshold.

Furthermore, if we preserved the principle of simply obtaining 51% against to recall, it would only take convincing 2% of the population to change the result: the system would be extremely unstable. The 75% is the most stable and reasonable threshold because it incorporates the same principle of majority legitimacy but applied recursively.

Philosophical principle The 75% threshold creates a “political cost” of change without being tyrannical. It forces the revocation to represent an aggregation of deep social consciousness and need, not a momentary outburst of anger. No legal proof or bureaucratic process is needed: if 75% of your district wants you out, you are out. It is immunity against institutional capture of control mechanisms.

The minimum participation of 25% of the district census is identical to that of district elections (Article 13). The principle is democratic symmetry: electing and revoking are acts of equal weight, so they must require the same level of mobilization. In practice, most people do not actively participate in politics outside of electoral cycles. If a quarter of a district mobilizes specifically to recall its representative, outside the cycle and after having passed the prior filter of 10% of signatures, that is already an unequivocal signal of genuine discontent. The theoretical worst case (25% participates, 75% of those vote in favor) implies that approximately 19% of the census suffices to recall. It is a low threshold in absolute terms, but high in terms of real mobilization: getting one in five people of a district to act outside the electoral cycle requires genuine and organized discontent.

The choice of a direct, non-bureaucratic mechanism is deliberate. How many citizens in a district will truly be willing to navigate complex legal procedures, administrative deadlines, and formal requirements to determine whether they can recall their representative? In practice, bureaucracy acts as a filter that reduces participation to those who have the time, resources, and knowledge to manage it. The foreseeable result is the formation of district oligarchies: small groups that dominate the mechanisms by being the only ones who understand them. These local oligarchies may form regardless – the Iron Law of Michels operates at all levels – but bureaucracy would make them significantly stronger by adding a barrier to entry that only they could easily overcome.

Census seniority and mass migration The requirement of 2 years registered in the district to vote in a revocation is a protection against coordinated mass migration: an attacker wanting to recall an inconvenient representative would have to move thousands of people to the district and wait 2 years before they could vote. During those 2 years, those people continue voting in their previous district – no new votes are created, only displaced with a 2-year delay.

Ordinary elections (Article 13) do not have this requirement because mass migration is less useful as an attack vector: there are local candidates who know the district, the AOCD redistributes by population every 21 years (an artificially growing district is resized), and moving thousands of people for years is an enormous cost even for a well-resourced attacker. The asymmetry between electing (without seniority) and revoking (with seniority) is deliberate: revocation is a more aggressive and concentrated act that requires additional protection against external manipulation.

Article 13: Runoff Election

The runoff prevents capture by minorities. In a single-round system with multiple candidates, a candidate with 20% can win. The runoff guarantees that the winner has at least majority support in the final round. It is the simplest and most effective mechanism to avoid constant deadlocks and ensure a minimum level of social agreement. It is not perfect, but with the current technological and human cognitive limits, it is the best we have.

If participation does not reach the minimum of 25% of the census in either of the two rounds, the election is repeated entirely from the first round. Why not repeat only the round that failed? Because low participation in the second round may be a symptom that the two finalists do not represent the district. In a highly fragmented vote, the two top vote-getters may have 10% each – technically the most voted, but the last choice for the remaining 80%. Repeating only the second round would force a choice between two candidates nobody wants. Repeating from the first round allows the political landscape to reorganize: new alliances, candidates who withdraw, voters who concentrate their support. The cost (repeating a first round that may have been valid) is less than the risk of imposing a representative without real support.

Article 14: District Size and AOCD

Why 95,000-120,000 inhabitants? The range comes from sociolinguistic data (Trevijano): linguistic communities below a certain population threshold tend to disappear. By extension, a coherent political community needs a minimum density to maintain cultural and political identity. The range is culturally contingent, not universally derivable, but it is plausible and functional. For small countries where this range is unfeasible (such as Andorra or micronations), the Bootstrap Process allows establishing different

parameters with N3 consensus. The geographic impossibility exception allows isolated districts (small islands, mountainous areas) to deviate from the range when contiguity and coherence constraints prevent it, always with the minimum necessary deviation.

The Algorithm (AOCD) The worst-case scenario: to capture a district through revocation, an adversary needs to influence approximately 19% of the population (75% favorable votes with minimum participation of 25% of the census). The economic proxy is the 25th percentile of income: it measures the cost of corrupting the most economically vulnerable segment.

The objective function (maximize the minimum P25 across all districts) means: the optimal distribution is the one in which the cheapest district to corrupt is as expensive as possible. The question is not “what is fair?” but “what is the structural cost of capturing this system?”

The constraints (geographic continuity, historical-cultural coherence) prevent wealth-based gerrymandering: districts cannot be drawn artificially to concentrate wealth while ignoring territorial reality.

Article 15: 21-Year Cycle

21 years is not a political or economic number. It is biological: the human brain reaches complete cognitive maturity (specifically the prefrontal cortex, responsible for executive function, planning, and risk assessment) at 21-22 years. Each cohort of adults brings new values, interests, and worldview.

Advantages of a biological clock:

- It is not politically manipulable (the government cannot change it).
- It does not depend on economic cycles (crises or booms do not trigger redistricting).
- It is not tied to ideology (it favors neither left nor right).
- From a security perspective, it functions as a non-capturable “external clock.”

Thinking as an attacker: demographic engineering requires 21-year planning horizons. The results are uncertain, making the investment unattractive for adversaries while synchronizing it with natural cycles of human generational maturation.

The 21-year cycle is protected at N5: modifying it requires broad consensus because shortening or lengthening the cycle is a significant lever of electoral manipulation. Reduction during the Bootstrap Process is not permitted because the district cycle is a structural variable that must be stable from the Constitution’s birth.

Article 16: Electoral Financing

Private donations are limited to 10% of the national P25 per person, a single donation per electoral process, and only natural persons (legal entities are prohibited from donating). Why? Because unlimited financing turns elections into auctions to the highest bidder with the largest marketing budget, reducing the richness of the democratic feedback cycle. The Iron Law of Oligarchy (Michels) predicts that the concentration of resources produces concentration of power. Limiting financing is limiting oligarchy.

The origin of donations is secret (to protect the donor from retaliation) but the destination and amount are public (so the electorate knows who receives how much). This asymmetry protects the individual without protecting the opacity of the system. For if the total donations exceed the total permitted limit, there will be a clear signal to the people that something must be investigated.

If the legal maximum is exceeded, the election is nullified once; at the second call, it is held definitively. Two chances, no more: if someone wants to sabotage elections through illegal financing, they can only delay them once. Additionally, each identified offender pays 10 times the amount exceeded, enforceable through asset expropriation if necessary. The sanction is deliberately disproportionate so that the cost of attempting to buy an election is ruinous.

The 7-day reflection period before any election prohibits all electoral campaigning. Only public events in previously agreed-upon spaces are permitted, with equal time and conditions for each candidate. Why not

try to prohibit indirect propaganda with more detailed rules? Because it is unrealistic: an advertisement can use metaphors, allusions, and advocacy without mentioning logos or names, and the casuistry is infinite. The Constitution defines the limit (electoral silence with egalitarian exceptions) and leaves the details of application and sanction to electoral legislation.

Commentary — TITLE III: TRANSITION PROCESS

Article 18: Institutional Transition

The Transition Process resolves the fundamental question: what happens the day after approving this Constitution? The democratic institutions do not yet exist, but someone has to govern while they are created. The answer is that the previous regime continues as an interim, but under the rules of this Constitution.

The previous regime exercises exclusively executive functions: maintaining order, administering services, executing existing law. It cannot legislate (the legislative monopoly belongs to the future Legislature per Article 22), nor judge (that belongs to the future Judiciary). In practice, it is a transitional government with a mandate limited to keeping the country running while democratic powers are constituted.

The election sequence is deliberate: Legislature first, Executive second. The Legislature is constituted first because it is the power closest to the people (district representatives directly elected). Once in office, the Executive is elected separately, guaranteeing its own legitimacy from day one. The Judiciary is constituted during the subsequent Bootstrap Process (Article 19), per Articles 36-38.

The publication of the AOCD with verifiable data guarantees that any citizen can replicate the calculation and verify that the districts were correctly formed. This minimizes the possibility of the previous regime manipulating the electoral distribution in its favor.

The 3-week deadline for AOCD publication, combined with elections in consecutive months, establishes an implicit ceiling of approximately 3 months for the complete Transition. It is a temporal reference for the people, not an institutional guarantee: during the Transition, the judicial mechanisms to enforce deadlines do not yet exist. The real guarantee is citizen vigilance, process verifiability, and popular pressure on a regime governing in an interim capacity.

If a state of emergency occurs during the Transition, the previous regime assumes control (it is the only actor with executive capacity before the President is elected). The mechanism is recursive: if successive interruptions occur, each time it resumes from where it was interrupted.

Article 19: Bootstrap Process

The hardware/software analogy A pure constitution is too abstract to operate. A real system needs:

- Hardware: immutable principles (structure). The Constitution.
- Firmware/BIOS: initial configuration that rarely changes. The Bootstrap Process.
- Operating system: operational rules within the framework. Ordinary legislation.
- Applications: concrete policies. Day-to-day decisions.

The Bootstrap Process is the firmware: it configures the operational details that the Constitution leaves open but with limits (rights restrictable during states of emergency, specific sanctions for legislators, catalog of complementary rights, etc.) with reduced consensus levels compared to the usual post-Bootstrap levels. This allows the system to be established quickly without the rigidity of ordinary procedures.

Why is it necessary? Because the Constitution defines what must be protected but not how in all details. For example: it is obvious that every citizen should have the right to appeal a sentence, but not to appeal 100 times because the system would be inoperable. The exact limit depends on the specific judicial system and certain procedures, but it surely does not exceed 5 per case. The Constitution sets the minimum (1 appeal and 1 cassation guaranteed) and the maximum (5 total), but the intermediate details – how many levels of appeal, in what types of proceedings – are left to ordinary legislation.

The Bootstrap allows the first legislature, elected under the new Constitution, to quickly establish the operational configuration that the Constitution explicitly assigns to it (such as the minimum years of experience for judges under Article 35) with reduced consensus levels at N1, without the rigidity of ordinary procedures. Popular nullification (Article 6) operates permanently, not only during the Bootstrap: the nullification threshold always corresponds to the consensus level required for the original decision, regardless of the actual percentage that voted for it. During the Bootstrap, since the required level is N1, nullification needs 51% of the census; in normal operation, a decision whose required level is N3 needs 66% to be nullified, even if in practice 80% had approved it.

Why can it not be reactivated? The Bootstrap is a configuration mechanism, not a permanent tool. If it could be reactivated, any future government could invoke a “new bootstrap” to circumvent the elevated consensus levels of normal operation. It is a unique and unrepeatable event.

State of emergency during the Bootstrap Unlike the Transition, during the Bootstrap there already exist a democratically elected Legislature and Executive. Therefore, if a state of emergency is declared, there is no need to resort to the previous regime: the President handles the crisis per the ordinary mechanisms of Article 55. The Bootstrap simply pauses and resumes with the remaining time left as of the day before the declaration, with a minimum of 2 months. The minimum guarantees that useful configuration time always remains after a crisis, preventing a nearly exhausted Bootstrap from losing its operational capacity after an interruption.

Commentary — TITLE IV: SEPARATION AND CHECKS ON POWERS

Article 20: Separation of Powers

The separation is material, not formal. Many constitutions declare separation of powers but allow the executive to appoint judges, the parliament to depend on the executive for its budget, or one power to control the financing of another. This Constitution requires real independence: of appointment, financing, and functioning. Without economic independence, there is no political independence.

No person may simultaneously hold more than one constitutional public office. Acceptance of a new office implies automatic resignation from the previous one. This prevents the concentration of power in a single person and reinforces the separation: a legislator cannot simultaneously be a minister, a judge cannot simultaneously be a legislator, and the President cannot self-appoint as head of a military branch.

That said, independence is not absolute nor can it be. Why? Because someone has to say “yes, this is approved.” A budget, a law, an organizational structure: at some point in the process, some body must have the final word. The most logical is that the power closest to the demos – the Legislature, composed of direct district representatives – exercises that function of final approval. But it must do so with limits, because the people cannot be permanently attentive to every budgetary battle between powers: cognitive overload makes it practically impossible.

Hence there exist deliberate points of contact between powers, designed so they control each other without any being able to strangle the other. The clearest case is the judicial budget (Article 32): the Judiciary proposes its own budget, but the Legislature must approve or reject it. Is this a dependency? Yes, but with three protections that neutralize it as an attack vector: the Legislature cannot modify the proposed budget (only accept or reject in full), rejection requires Level N3 consensus (66%), and if rejected, the previous budget adjusted for inflation is maintained. That is, the Legislature cannot use the budget to punish the Judiciary: the worst it can do is maintain the status quo.

Mutual assured destruction (Articles 39-40) follows the same logic: it is a point of contact between Executive and Legislature that exists precisely to resolve deadlocks, but designed so that activating it has a symmetric cost that disincentivizes its abuse.

Articles 21-23: Legislative Power

A single chamber, not bicameral. A second chamber (Senate) in a single-member system adds no representativeness: it duplicates bureaucracy and reinforces oligarchies. The legislative function is a monopoly of the Legislature (the executive does not legislate, the judiciary does not legislate), which maintains real separation of powers.

Legislative votes are public because transparency is the basis of accountability. If your representative votes in secret, you cannot hold them accountable for their votes. The publicity of the legislative vote is the necessary condition for revocation (Articles 11-12) to make sense.

Legislative consensus levels are calculated on the total number of seats, not on votes cast. There is no abstention or blank vote: whoever does not vote in favor votes against. Why? Because if consensus were calculated only on votes cast, a minority could legislate by taking advantage of absences. Worse yet: if blank voting were allowed as “I don’t care,” subtracting it from the calculation base, it would create an enabling mechanism with an alibi: a group of legislators could vote blank to reduce the base and allow a minority to approve laws without assuming political responsibility before their districts. With the calculation on total seats, each consensus level generates its own implicit quorum: N1 needs at least 51% of all legislators in favor, N4 needs 75%, and so on. District revocation (Articles 11-12) complements this mechanism: a representative who is systematically absent answers to their district.

The limit of 7 laws approved per week exists to protect the Judiciary. If the Legislature could approve laws without rate limitation, it could flood the judicial system with legislation faster than judges can review its constitutionality. With 7 laws per week, a judge needs to review at most 1 law per day in case of challenge. This limit ensures that the constitutionality review of Title IV is operationally viable, not just theoretical.

Articles 24-25: Executive Power

The President is directly elected by the people. Why not by parliament? Because direct election is simply more democratic: although the Legislature is composed of district representatives close to the citizen, it would still be an indirect election, one more step between the demos and whoever manages the State. Direct election of the Executive gives the President their own legitimacy, independent of the Legislature’s, which reinforces the separation of powers. But the President is a pure manager: they execute the laws the Legislature approves, not create them. The distinction is fundamental. In many parliamentary systems, the prime minister is the leader of the majority party, which merges executive and legislative. Here they are radically separated.

There is only one figure at the helm of the Executive: the President. No simultaneous prime minister and president, no heads of government separate from heads of state, no intermediate figures that dilute responsibility. Each added layer increases ambiguity about who decides what, multiplies bureaucracy, and makes the system unnecessarily complex. With a real and controlled separation of powers like this Constitution’s, there is no need to distribute the Executive among several figures: a single individual in command, with direct popular legitimacy, revocable through mutual assured destruction if the Legislature deems it necessary. Responsibility is clear, the chain of command is simple, and there is no ambiguity about whom to hold accountable.

Ministerial delegation functions as proposal, not autonomy: ministers prepare and propose decisions, but every Executive Power decision requires the President’s approval for execution. There is no figure of the minister who acts and then the President revokes: nothing is executed without prior approval. Why not allow ministerial autonomy with presidential override? Because a captured minister could act irreversibly before the President intervenes. With the prior approval model, the attacker needs to capture the President, not a minister. This is slower but safer.

Military decisions (Articles 50-52) and the declaration of states of emergency (Article 55) are functions of the President like any other, but their specific articles directly regulate how they are made: a clear chain of command with a single identifiable responsible party, which is necessary for the structure of personal consequences (especially the amputation of Article 52) to function.

The presidential term (5 years) is intentionally different from the legislative (4 years) to decouple electoral

cycles and prevent the same moment of enthusiasm or crisis from simultaneously determining both powers.

The term limit is a cooldown, not a lifetime prohibition. Why? Because a lifetime limit is paternalistic: if the people want to re-elect a leader who has demonstrated competence, preventing it substitutes an arbitrary rule for popular judgment. The cooldown of one complete term (5 years out of office) fulfills the real defensive function: breaking the continuity of power to prevent progressive institutional capture, without permanently closing the door on a good ruler. The classic attack vector against this model is the puppet: the outgoing leader installs an allied successor during their absence. But in this Constitution, the successor is not installed; they are elected by direct suffrage. And if they turn out to be an incompetent puppet, the mechanisms of revocation (mutual assured destruction, Article 39) and judicial control operate against them with the same force as against any other President. Trusting the mechanisms for this is consistent with trusting them for everything else.

Article 26: Presidential Succession

The Vice President is appointed by the President, not elected by the people. This is deliberate: their function is not to govern but to guarantee operational continuity in case of emergency. Precisely because they have no direct popular legitimacy, their interim mandate must be as brief as possible: new elections within a maximum of 45 days. Whoever assumes the interim Presidency is subject to exactly the same responsibilities, obligations, and consequences as the elected President. This is fundamental: the interim is not a guardian with special immunity; they are a President with all the force of law.

Why not let the Vice President finish the term? Because that would be handing over Executive Power to someone nobody voted for, potentially for years. This opens two attack vectors: assassinating the President so their Vice President (who has been bought) assumes power, or a foreign power corrupting the Vice President knowing they only need to eliminate the President for their investment to pay off. Immediate elections neutralize both vectors: even if the Vice President has been bought, they only have 45 days before the people decide who governs.

If elections are not held within the 45-day period, the interim is considered a usurper. This is deliberate: the interim has no legitimate incentive to delay elections, so any delay is suspicious. The consequence is severe precisely so no one takes the risk. The only exception is a state of emergency that materially prevents elections, a case covered by Article 61, which suspends electoral deadlines when the conditions of Article 5 cannot be guaranteed. Article 26 explicitly references Article 61 to prevent an isolated reading of Article 26 from leading to an interpretation of the deadline as absolute.

When succession is activated by mutual assured destruction (Article 39), the interim Vice President has strictly limited functions: maintaining institutional order, without new budgets, appointments, or policies. Why more severe restrictions than in succession by incapacity? Because mutual assured destruction is a deliberate political act, not an emergency. The country does not need a new government; it needs new elections. The interim is a guardian of the status quo, not a ruler.

The death of the President activates succession directly (Article 26), without judicial process. It is an objective fact that requires no declaration by a judge nor admits appeal – requiring judicial procedure for an evident death would introduce an absurd delay in the chain of command.

The declaration of incapacity (Article 27) is exclusively judicial and is reserved for clinically disputable states: coma and severe cognitive deterioration. The process can be initiated by the Vice President or by the Legislature through N2 consensus. The Vice President can initiate the process unilaterally, which creates a conflict of interest (they become interim and candidate). However, the Vice President does not declare the incapacity – they only request it. The judge acts as a filter, and the declaration is challengeable by any citizen with the right to vote. If the declaration is overturned on appeal, the judge is subject to the sanctions of Article 44 (criminal liability of judges for overturned incapacity declarations). These counterweights – judicial filter, citizen appeal, sanction of the judge – make it unnecessary to require an additional legislative threshold for the Vice President’s request, which would delay the mechanism in real emergencies.

The declaration of incapacity takes immediate effect – it is not suspended during appeal. A President in a coma needs to be replaced immediately; they cannot wait weeks of process. If the declaration is overturned

afterward, the judge pays the criminal consequences. The balance is: speed of response with posterior control, not prevention that paralyzes.

If the President recovers their capacity before new elections are held, they retake office automatically. If new elections have already been held, the new President is legitimate – they were elected by the people. There is no restitution mechanism: the democratic election is definitive, regardless of whether the incapacity was real or erroneous. The remedy against an erroneous declaration is the sanction of the judge (Article 44), not the annulment of a democratic election.

The causes of incapacity are expandable but not reducible by the Legislature with N3 (during Bootstrap, N2), which allows adapting the causes to unforeseen situations without lowering the guarantees. Irreducibility prevents a complicit Legislature from eliminating causes of incapacity to protect a sick President whom it suits them to keep.

The secondary line of succession (longest-serving Legislative representative) covers the extreme case of both President and Vice President being simultaneously incapacitated. The same conditions apply: interim character, same responsibilities and consequences, elections within 45 days. The line of succession is expandable but not reducible by the Legislature with N3 (during Bootstrap, N1), allowing additional positions to be added to the succession chain if experience so advises. Irreducibility is key: it prevents a complicit Legislature from shortening the succession chain to facilitate a controlled power vacuum.

Articles 28-31: Ministries and Budget

The limit of 20 ministries and the default budget mechanism are mutually reinforcing measures. The limit on ministries prevents bureaucratic inflation: each ministry is a center of power and budget, and more ministries means more capture points for an adversary. The President has a monopoly on appointment (they do not need parliamentary approval for ministers) because the executive must be agile. The limit is modified through the ordinary reform procedure (N4): it is an administrative detail that does not merit reinforced protection. During the Bootstrap it can be adjusted with N1 to adapt the initial ministerial structure.

The automatic removal of a minister upon criminal conviction requires that the conviction be final – that is, confirmed on appeal or not challenged within the deadline. Without this requirement, a corrupt first-instance judge could automatically remove any minister with a fabricated conviction, knowing it will be overturned on appeal but that the damage (the removal) will already be done. The word “final” guarantees that the complete judicial system has confirmed the conviction before irreversible effects occur, consistent with the right of appeal under Article 34 and with the terminology of Article 4 (“final criminal conviction”).

The default budget complements this agility with stability: if the Legislature does not approve a new budget, the previous one adjusted for inflation is extended. The system always works; political disagreement does not paralyze the State. Together, both measures limit the size of the executive structure (maximum 20 ministries) and guarantee that this structure always has operational funding (default budget).

A President cannot inflate the bureaucracy to create power fiefdoms, and a Legislature cannot paralyze the government by withholding the budget as a political weapon. The only remaining attack vector is the manipulation of inflation data to indirectly increase the executive budget, but falsifying inflation has visible and immediate consequences for the entire citizenry, which generates a natural counterweight: popular anger acts as a correction mechanism. Inflation is one of the few macroeconomic data points that citizens perceive directly in their daily lives – in their grocery shopping, in their rent, in energy prices – without needing to read reports or understand statistics. A gross manipulation would be evident; a subtle manipulation (1-2% extra) produces a marginal benefit that does not justify the political risk of being discovered. This is a consciously accepted risk: constitutionalizing statistical methodology would be over-engineering, and the Legislature can always approve a new budget that corrects any deviation.

Articles 32-38: Judicial Power

Financial independence The Supreme Court proposes its own budget. Any justice can submit a proposal, but the agreement of 2/3 of the justices is required to present it to the Legislature. This internal threshold prevents a court president or a minority of justices from unilaterally proposing an abusive budget – and

it is consistent with the 2/3 already used for accreditations under Article 35. If the justices cannot reach agreement, the previous budget adjusted for inflation is maintained: lack of internal consensus does not paralyze Judicial funding.

The Legislature can approve or reject the proposed budget (with Level N3 consensus), but not modify it. If rejected, the previous one adjusted for inflation is maintained. The judicial budget thus has a dual control: 2/3 internal to propose and N3 external to reject. The N3 rejection level is protected at N5, consistent with the other judicial parameters: without this protection, a Legislature with N4 could lower the rejection threshold to N1 and financially strangle the Judiciary with a simple majority.

Three-level structure First instance, appeal/cassation, and Supreme Court. The three-level structure is protected at N5 because Articles 34 and 43 depend on the existence of exactly these three levels – modifying the structure requires rethinking the entire system of appeals and constitutionality review.

The Constitution guarantees a minimum of one appeal (full review of facts and law) and one cassation (review only of law) before the immediately superior court. “Immediately” is deliberate: appeals always go to level +1 (first to second, second to Supreme), never skipping a level. The total maximum of appeals and cassations in a single case is 5.

Decisions of the Supreme Court are final by default. Only when the Constitution expressly establishes it (such as presidential noncompliance under Article 41 or the accountability of Article 52) is a Supreme Court decision appealable. In those cases, the appeal is resolved by a different justice of the same Court, selected through a deterministic random mechanism based on the appellant’s biometric data. This mechanism prevents the appellant from choosing which justice will review their case – the assignment is deterministic and verifiable, but not manipulable. The constitutionality process of Article 43 has its own layer system (first instance, cassation, Supreme Court) that functions as a specific procedure, replacing the general regime of Article 34 for constitutionality questions.

Appointment of ordinary judges and accreditations The appointment of first and second instance judges is the exclusive competence of the Judiciary. Neither the Executive nor the Legislature participates in the process. The qualification exam is designed, administered, and graded by the Judiciary. The reason is direct: whoever controls the entry gate to the judicial system controls the judicial system. An already-appointed judge is independent, but if another power decides who enters, independence is nominal.

Valid degrees and accredited law faculties are determined by 2/3 of the Supreme Court. The 8-year modification cycle prevents opportunistic changes (discrediting a faculty that trains inconvenient judges). The 1-year transition period protects those who have just graduated under a current accreditation. During the Bootstrap, all faculties of the previous regime are accredited by default; after the first round of justices, the list can be adjusted with N1 of the Supreme Court to allow an initial calibration without requiring the full 2/3 threshold.

Candidates for the Supreme Court must demonstrate a minimum of 5 years of experience as a judge (adjustable between 5 and 10 years). This requirement does not apply to ordinary judges, where it would be paradoxical to require judicial experience of someone who is not yet a judge. For ordinary judges, the degree and exam suffice; for the Supreme Court, experience is added because their decisions are final in the judicial order.

Supreme Court: composition and renewal Article 36 defines the composition (9 justices, 12-year terms, 8-year exclusion, staggered renewal of 3 every 4 years) and Article 38 the procedures for initial constitution and renewal. This separation follows the single responsibility principle: Article 36 says WHAT the Supreme Court is, Article 37 says WHO composes it, and Article 38 says HOW it is constituted and renewed.

Why staggered renewal? The justices are elected by vote of legal professionals, not appointed by the government. Staggering does not protect against “government capture” in the classic sense – it protects against waves. A wave of opinion, propaganda, or vote buying at a specific moment can only affect one-third of the court. Capturing the majority requires maintaining that influence for three consecutive cycles (12 years), which is much more difficult and expensive than capturing it all at once.

The numerical parameters (9, 12, 8, 4, 3) are protected at N5. The coherence of staggered renewal – that the number of justices be divisible by the number renewed per cycle – is protected at N6. This mathematical constraint guarantees equal cohorts: without it, someone could change to 10 justices while maintaining 3 per cycle, creating unequal cohorts (3, 3, 4) with one cycle renewing more justices than the others – a capture window.

Appointment of Supreme Court justices Candidates are proposed by legal institutions (bar associations, law faculties, judges’ associations). The final election is conducted by legal professionals through direct, binding, and non-delegable voting. Why not popular vote by the entire citizenry? As Trevijano argued, the selection of judges is a technical matter: the average citizen lacks the criteria to evaluate legal competence – they would vote by name, charisma, or campaign, not by legal rigor. Legal professionals do have that criteria.

A smaller professional electorate is more vulnerable to vote buying than millions of citizens. This is where staggered renewal acts as complementary protection: even if an attacker buys votes in one cycle, they only capture one-third of the court. And legal professionals tend to have medium-to-high incomes, which makes buying them more expensive. The combination of professional electorate + staggering offers technical criteria without sacrificing protection against capture.

The total number of candidates must be strictly greater than the number of vacancies – without this constitutional minimum, the Bootstrap could configure a system with exactly as many candidates as positions, turning the election into a mere ratification without a real option. The definition of who qualifies as a legal professional is established during the Bootstrap with N1. The voting procedure (number of candidates per institution, voting system) is established with N2 – a higher threshold than usual in the Bootstrap because it determines how the body that interprets the Constitution is selected. Any subsequent modification requires N5.

The verifiable random draw for initial terms During the Bootstrap, the 9 justices are simultaneously appointed but need staggered terms. The specific draw procedure is chosen during the Bootstrap with N1, provided it is deterministic, non-manipulable, and publicly verifiable. If no alternative procedure is chosen, the default method applies: a cryptographic hash function applied to each justice’s biometric data, with a fallback chain that guarantees availability for any person regardless of physical disabilities.

Why offer a default method? For operational reasons: having a concrete procedure already defined makes the Bootstrap Process more fluid. Following the philosophy of Articles 5 and 17, what the Constitution protects are the characteristics (deterministic, non-manipulable, verifiable), not the technology. Outside the Bootstrap, the draw procedure cannot be modified – it is used only once and the rotation can only be manipulated at the start.

Early vacancies If a justice leaves office before their term expires (death, resignation, disqualification), the replacement serves only the remaining time of the original term. Why not a full 12-year term? Because that would break the staggered renewal: if a justice from cohort A dies in year 2 and their replacement serves 12 full years, cohort A falls out of sync with the others. Eventually renewals accumulate and one cycle allows more justices to be appointed than intended – a capture window. That the replacement may serve only 2 weeks (if the vacancy occurs at the end of the term) is a minor inconvenience compared to breaking the systemic protection of staggering.

While the vacancy is not filled, the empty seat is counted as a vote against in Supreme Court decisions requiring consensus, consistent with the rule of Article 23 for legislative seats. This makes the court’s decisions more difficult during the vacancy, which functions as a natural incentive to fill it quickly.

Articles 39-40: Mutual Assured Destruction

How to resolve a deadlock between President and Parliament without destroying democracy? The mechanism of mutual assured destruction, an original idea of Trevijano, solves this problem: both have a “nuclear button.”

The Legislature can remove the President, and the President can dissolve the Legislature. But activating the button destroys both: simultaneous elections are called for both. It is mutually assured destruction (MAD), inspired by nuclear deterrence.

It works because the cost of use is symmetric: both lose power, so it is only activated in a genuine crisis, not capriciously. Neither branch can tyrannize the other because there is no veto imbalance. And the outcome is always democratic: the people decide who was right through new elections.

The deactivation period (cooldown) is a proprietary addition to Trevijano's idea. After activating the mechanism, there is a period during which it cannot be used again, and this period is asymmetric: the invoker pays more (longer period before being able to reactivate it). This disincentivizes offensive use and favors defensive use. Without this cooldown, the mechanism could become a weapon of attrition: activating it repeatedly until the adversary surrenders. The asymmetric cooldown turns it into a weapon of last resort.

The existence of the mechanism is an entrenched clause (Article 66): it cannot be eliminated. Its numerical parameters (removal threshold, temporal range limits, cooldown periods) require N6 consensus to modify and are not modifiable during the Bootstrap – the structure of the mechanism must be stable from day one. The only exception is the specific value of the deadline for calling new elections, adjustable within the range of 7 to 30 days: with N1 during the Bootstrap and N4 afterward. The logic is the same as in a competitive game: not only does the ability matter, but the cooldown and activation parameters are equally determinative of its effectiveness. Changing the removal threshold from N1 to N6 would be equivalent to neutralizing the mechanism without formally eliminating it.

No participant is excluded from running in the immediate elections. Why not prohibit the removed President from running? Because that would be removing the people's option to re-elect them, and this Constitution never restricts the people's options. If the Legislature removes the President but the people want to re-elect them, that is democracy working. If the President dissolves the Legislature and runs again, the people decide whether they were right. The cost of the mechanism is not the exclusion of candidates but the electoral uncertainty and the asymmetric cooldown: the invoker risks losing power and pays a longer deactivation period.

During the period between activation and the new elections, the Legislature remains dissolved and cannot legislate. However, if a state of emergency occurs during that period, the dissolved Legislature is reconvened exclusively to exercise the control functions of Articles 58 to 63. Why this exception? Because without it, a corrupt President could invoke destruction and a foreign ally could fabricate a military situation during the following 30 days: the military state of emergency activates automatically, the interim Vice President obtains emergency powers, elections are postponed indefinitely, and there is no Legislature to revoke anything. The limited reconvention closes this loophole without restoring general legislative powers.

Grave Presidential Noncompliance

Mutual assured destruction resolves deadlocks between Legislature and Executive. But what happens when the President ignores the Judiciary? A President who refuses to execute a final ruling of the Supreme Court is breaking the separation of powers, and if the Legislature is complicit or indifferent, mutual assured destruction is not activated.

This mechanism closes that gap: both the Legislature (N1) and the People (10% of the census) can initiate a process before the Supreme Court to determine whether the noncompliance is serious enough to call new presidential elections. Responsibility falls on the President because every Executive decision requires their approval (Article 25) – if a subordinate fails to comply, the President is responsible for having approved or permitted it. The minimum constitutional cause (refusing to execute a final Supreme Court ruling) cannot be eliminated or modified; additional causes are established by ordinary legislation with N4 protection. The access parameters for the mechanism (N1 and 10%) are protected at N6, consistent with mutual assured destruction: they are control mechanisms whose accessibility cannot be neutralized without quasi-unanimity.

Why new elections and not imprisonment? Because the problem is not criminal but democratic: a President who ignores the Judiciary has broken the pact of separation of powers, and the democratic response is to return the decision to the people. If they have also committed a crime, the ordinary criminal avenue remains

available. The effect occurs only when the Supreme Court's decision becomes final – that is, after the appeal that Article 34 allows or after the deadline expires without challenge. The interim exercises the limited functions of the second scenario of Article 26 (maintenance of institutional order), for the same reason as in mutual assured destruction: the VP served under a President removed for noncompliance and should not be able to continue the same policies.

Why diffuse review and not a centralized Constitutional Court?

The traditional Constitutional Court (European model, concentrated) is:

- A new bureaucratic super-institution.
- Easily capturable: it suffices to control a single body to control all constitutional interpretation.
- A single point of failure for democracy.

Diffuse review (American model, distributed) allows any judge to declare a law inapplicable as unconstitutional in a specific case. Combined with the layer system (first instance -> cassation -> Supreme Court -> popular nullification), the power of constitutional review is distributed without concentrating it in a single body.

Saturation of the constitutional review system The system allows a maximum of 100 laws under simultaneous review (10 groups of 10). The 6-year blocking period per law (counted from the filing of the challenge) and the 4-month waiting period per citizen are the two protections against deliberate saturation.

An attacker attempting to saturate the system needs: - At least 10 coordinated citizens to fill all 100 slots at once (10 groups of 10 laws) - Those citizens cannot file challenges again for 4 months - To maintain saturation continuously: at least 40 citizens (10 for each month of the waiting period)

Each month of complete saturation consumes approximately 100 challengeable laws (blocked for 6 years). If L is the total number of laws in force and approximately 364 new laws are approved per year (7 per week), the maximum duration of complete saturation is approximately $L / (1,200 - 364) \sim L / 836$ years. For a legal system of 10,000 laws, complete saturation could be maintained for about 12 years; for 1,000 laws, barely over a year.

Once existing challengeable laws are exhausted, the attacker can only challenge new laws (364/year), which fills less than a third of the system's capacity (364 of 1,200 possible per year). Complete saturation becomes mathematically impossible.

This is an accepted risk: temporary saturation is possible but costly (requires coordination of dozens of citizens), limited in time (challengeable laws are exhausted), and partially mitigated (the system continues functioning at 70% after the initial exhaustion).

All numerical parameters of Article 43 are protected at N5. They are not protected individually because they form an interrelated system: the 6-year blocking period, the 10 groups of 10, the 2-week appeal deadlines, and the 4-month waiting period per citizen are calibrated as a joint balance. Changing any of them alters the balance between system accessibility and protection against saturation.

Bidirectional criminal liability

Article 44 centralizes the criminal liabilities arising from the constitutionality process. It is bidirectional in two senses: it sanctions both legislators who approve unconstitutional laws and judges who err in ruling on constitutionality – in either direction. A judge who declares a constitutional law unconstitutional and a judge who lets an unconstitutional law pass bear the same responsibility. A judge is obligated to rule; they cannot evade the decision, so they must be accountable for being wrong in either direction.

The review of judicial error is conducted through the procedure of Article 43 but applying the constitutional text and configurations in force at the time the decision was issued. This is fundamental: if the Constitution is reformed between the decision and the review, the judge cannot be punished for correctly applying the Constitution of their time.

The criminal liabilities for other mechanisms (popular nullification under Article 46, presidential incapacity under Article 27) are defined in their respective articles, referencing Article 45 for the specific sanctions and Article 44 as a benchmark of severity. Each mechanism manages its own consequences.

The specific sanctions (Article 45) are established during the Bootstrap with N3 – a higher threshold than the usual N1 because defining criminal penalties deserves broad consensus. The default sanction for legislators is the payment of 10 years of their salary as debt, applicable if the Bootstrap does not define another. For Supreme Court justices, the constitutional minimum sanction is 20 years of imprisonment, configurable during the Bootstrap with N3 and modifiable subsequently with N5.

The economic sanction can only be paid with salary from personal labor (not investments, donations, or asset sales). This prevents a wealthy person from easily paying the fine and turning it into a business cost.

Popular Nullification of judicial decisions (Article 46)

When the Supreme Court declares a law unconstitutional, its decision is technically final in the judicial order. But it is not democratically final. The people, as the ultimate source of legitimacy (Article 1), can nullify that decision through collecting signatures of 51% of the census. This implements the hierarchy of legitimacy: Judicial < Legislative < Popular.

The 3-month reflection period avoids impulsive reactions. The threshold of 51% of the census (not of voters) guarantees that the nullification represents a real majority of society, not just of those mobilized.

Popular nullification also extends to ordinary (non-constitutional) judicial decisions, with higher thresholds: 30% of the census as the initiating group and signatures at the consensus level equal to the highest level required to approve the laws on which the decision was based, with a minimum of N1. This is consistent with the hierarchy of Article 1: if the people created a law with a certain consensus level, they need at least that same level to contradict the judicial interpretation of that law.

The signature collection must be formally declared before it begins – signatures prior to the declaration are not valid. This prevents the silent accumulation of signatures as a form of permanent pressure on the Judiciary. Once declared, the maximum period to complete the collection is 2 years. All parameters of the article are protected at N6, consistent with the fact that popular nullification is a mechanism of direct democratic control whose accessibility cannot be neutralized without quasi-unanimity.

Why is budgetary transparency constitutional?

Because without it, all other mechanisms are blind and inefficient, probably to the point of being inoperative.

Revocation requires information about what your representative does. Verifying that money goes where the law says it should requires access to the actual budget. Post-emergency accountability requires access to real data. Budgetary transparency is the informational infrastructure of democracy.

Every public budget is published in an auditable system. Budget execution is updated every 30 days. Exceptions are minimal and limited (classified intelligence operations, audited by a legislative commission).

Right of citizen audit

Any citizen can request public data and receive it within a maximum of 30 days. This deadline is constitutional (not legislative) so that no subsequent law can extend it indefinitely. The process must be accessible, free of charge, and comprehensible: it is not enough to publish data in an incomprehensible technical format.

Civil control of the military

Due to the frenetic nature of battle, a military with several leaders of equal authority is like a headless chicken: contradictory orders, paralysis in decisions, and confusion in the chain of command. That is why

military command requires a single supreme commander. The Constitution assigns this role to the President because military power must be subordinated to civilian power – an autonomous military is a state within a state – and the President is the civilian office most directly linked to the people by direct election.

Why 85% (N5) to declare war?

This extraordinarily high threshold is intentional: it seeks to limit wars of aggression. Only a war that enjoys near-unanimous national consensus can be declared. The initiative is exclusive to the President (they are the Commander-in-Chief), but approval belongs to the Legislature – neither can declare war unilaterally. Immediate defense against attack does not require prior declaration (it would be absurd to demand a vote while bombs are falling), but it does require immediate notification to the Legislature and subsequent accountability. Ordering a defense without a real attack is punished with the same severity as the disastrous secret operations of Article 52 – personal and physical punishment. This closes the loophole of a President who fabricates an attack to activate a military state of emergency.

Revoking the declaration of war requires N3 of the Legislature (on the initiative of the President or of the Legislature itself), provided the territory is not under attack. Why N3 and not N1? Because declaring war is a gravely serious decision made with N5 – revoking it with a simple majority would trivialize that commitment. N3 demands broad consensus to end the war, preventing a circumstantial majority from abandoning an active conflict under political pressure. The condition of not being under attack prevents unilateral surrender: while the enemy is attacking, the armed forces need the powers of the military state of emergency to defend the territory.

This accountability exists, among other things, to mitigate the scenario in which a president deliberately orders their forces to let themselves be attacked in order to attempt to concentrate power in their own hands. It may be paranoid, but the goal of this Constitution is to last forever if possible, and every scenario must have, if not a fix, at least a damage mitigation. Here we again observe the design mindset of robust systems that every hacker and software architect shares: good will is not assumed, nor are “happy paths” – failure is assumed.

Amputation of a hand for disastrous secret operations

This is the most controversial provision of the Constitution. Secret operations are a very useful military weapon and therefore should not be prohibited, but they need a counterweight proportional to their opacity. The logic is as follows:

The President can order secret military operations without legislative approval (that is what makes them secret). But if the operation results in military disaster or unauthorized armed conflict, the President personally responds with their body. The process maintains the separation of powers: the Legislature accuses (with N1), but the Supreme Court judges and decides whether to apply the punishment. The decision is appealable by any citizen, like any other judicial decision.

Why physical punishment and not imprisonment or a fine?

- Money can buy anything. A president who initiates a secret war through foreign bribery accepts the risk of a fine or imprisonment if the economic benefit is sufficient. Irreversible physical pain has no economic payoff: it only has cost.
- Imprisonment can be evaded (pardon, escape, statute of limitations). Amputation is immediate and irreversible.
- The deterrence works because it is personal. No abstract institution is punished; the individual who made the decision is punished.

From incentive analysis: if foreign nations attempt to buy a president to create chaos, they cannot buy them out of the pain. The personal cost guarantees that the President will carefully weigh before ordering risky operations without legislative backing.

Amputation is the default punishment, but it can be modified during the Bootstrap with N3 provided the alternative punishment is personal and physical – not economic or substitutable. This flexibility allows

adapting the specific form of punishment to cultural sensitivities without weakening the deterrent principle.

Separation of military branches

The Armed Forces are organized into separate branches (Army, Navy, Air Force) with chiefs appointed by the President and revocable by the Legislature (N4). This separation makes coups d'état more difficult: simultaneous coordination across all branches would be needed, which multiplies the number of people who must conspire and increases the probability of leaks. The protection is not absolute – the President is Commander-in-Chief of all branches – but each branch chief is an independent point of failure who can refuse to participate.

The three original branches cannot be eliminated or merged (N5 to modify this protection). The Legislature can create new branches with N3 to adapt to technological evolution (cyberdefense, space forces) without weakening the anti-coup structure. Specialized subdepartments (chemical weapons, cybersecurity) can be created within each branch without needing a new branch.

After revoking a branch chief, the President must appoint a replacement immediately but cannot revoke them for 1 month (except during a state of emergency). This prevents the cycling of chiefs to find a yes-man. The replacement cannot be the revoked person, nor a relative up to the second degree of the President, nor the Vice President, nor a serving minister – restrictions that close the vectors of nepotism and concentration of civilian-military power.

The structural problem

Emergency powers tend to become permanent. It is a predictable pattern from incentive analysis: whoever receives exceptional powers has the incentive to maintain them, and the crisis itself provides the justification for not returning them. As stated above, protection has a double edge.

Without explicit mechanisms of expiration and increasing consensus, every emergency becomes an opportunity for authoritarianism. There is no need to search for specific historical examples, though they exist: it suffices to understand the incentives. If you give someone power without a return date, they will probably not return it or will cling to it as long as they can.

Whatever the frequency of this phenomenon, a serious and functional Constitution must take even the smallest detail into account. Just as irreversible cryptocurrency code – where you cannot patch after deployment – a Constitution must anticipate failures before they occur. Here we can observe the principle mentioned earlier: good will is not assumed; failure is assumed.

Increasing consensus and decreasing intervals

Renewal of the state of emergency requires increasingly higher majorities at increasingly shorter intervals:

- At 6 months: 51% (easy if the crisis is real).
- At 8 months: 60% (questions begin).
- At 9 months: 66% (serious debate).
- At 10 months: 75% (broad consensus required).
- Every 2 weeks afterward: 85% (near unanimity).

The logic is simple: a legitimate crisis easily generates consensus. A pseudo-crisis loses support over time. If a government needs 7-10 months of emergency powers, society has the right to question it with increasing rigor.

False declaration of a state of emergency

Declaring a state of emergency without a real crisis is a serious crime (10 years of imprisonment by default). The reason is obvious: a state of emergency temporarily concentrates power in the Executive. If there are no consequences for declaring one falsely, it becomes a tool for concentrating power under the pretext of crisis.

The default sanction is high but modifiable (N2 during Bootstrap, N3 afterward) because it is an operational parameter whose optimal value depends on context.

Automatic activation

In the fields of Internal Security and Military, activation is automatic: the state of emergency exists as a legal fact from the moment the cause occurs, not from when someone declares it. There is no prior filter at entry. This is deliberate: faced with a coup d'état or an invasion, conditioning activation on a formal act by an official who could be compromised or incapacitated is worse than having no filter. Controls are at the exit: legislative ratification (Internal Security), judicial review (Art 62), crime for falsity (Art 55), and accountability (Art 64).

Specific scenarios and definition of “attacker of the nation”

The causes for each type of state of emergency (natural catastrophe, coup d'état, invasion) are necessarily generic in the constitutional text. It is impossible to anticipate every specific scenario: is a massive cyberattack a “technological disaster” or an act of “war”? Is a violent protest “armed insurgency”? Attempting to enumerate every case in the Constitution guarantees gaps.

The solution is to delegate the definition of specific scenarios to ordinary legislation, but with a high threshold: N3 (67% of the Legislature). This level is deliberately higher than the usual N1 or N2 for ordinary legislation because these definitions determine when the State can restrict fundamental rights. A low threshold would allow a simple majority to define “coup d'état” in a way that includes peaceful protests or “attacker of the nation” in a way that includes political opponents. N3 demands a broad consensus that makes the partisan use of these definitions difficult.

The same logic applies with particular force to the definition of “attacker of the nation” in the Military Field, where all fundamental rights can be restricted. History repeatedly shows that governments label opponents as enemies of the State to justify repression. N3 does not eliminate this risk, but it substantially makes it more difficult. And if it happens anyway, the popular nullification exception of Article 6 allows the people to correct it with only N1 of the census.

Six non-suspendable limits

No crisis authorizes:

1. Modifying the Constitution.
2. Changing the electoral law.
3. Postponing elections (except for physical impossibility).
4. Postponing judicial proceedings (except for physical impossibility).
5. Governing without parliament.
6. Governing without courts.

These limits are absolute because if you destroy any of them, democracy crumbles – more slowly or more quickly, but it crumbles. Without a stable constitution, there are no rules. Without electoral law, there are no clean elections. Without elections, there is no representation. Without parliament, there is no democratic legislation. Without courts, there is no one to control power. Each of these six points is a structural piece: remove one and the rest weakens until collapse.

Parliamentary control and elections during states of emergency

The Legislature functions normally during any state of emergency (limit 5). Mutual assured destruction is suspended because it makes no sense to resolve a political deadlock while there is a real crisis – but the Legislature continues legislating, overseeing, and controlling.

Elections can only be postponed due to objective physical impossibility (aligned with Article 63). It is not enough that “conditions cannot be guaranteed” – that threshold was too low and left the Executive the decision of when conditions were guaranteed, creating a perverse incentive to prolong the suspension.

Now the Legislature determines through N1 when the physical impossibility has ceased. Once determined, the 45-day deadline to hold elections (the same as Article 26) begins to run and the usurpation penalty is reactivated. The same 45-day deadline as in ordinary presidential succession is used to avoid having two different deadlines for the same type of decision. This eliminates the possibility of the Executive being judge and party on the duration of its own interim mandate.

Judicial control of the state of emergency declaration

The Judiciary can review not only the measures adopted during the emergency but the declaration itself: did the crisis really exist? Any citizen with the right to vote can request this review before a first-instance judge, without needing to have had their rights violated. This is deliberate: the declaration of a state of emergency affects the entire citizenry, so any citizen has standing to challenge it.

If a court declares through a final ruling that the state of emergency was declared without a real crisis, the state of emergency ceases automatically (Article 65). This closes the last gap in the termination mechanisms: without this provision, a fraudulently declared state of emergency could only end through non-renewal by the Legislature or through legislative revocation – both political controls. Judicial review adds an independent counterweight based on facts, not politics.

Prohibition of decrees outside of states of emergency

The Executive can only issue decrees during a state of emergency. Outside of one, decrees are absolutely prohibited. This prevents executive legislation (“decree-ism”) that erodes the separation of powers. If the President wants a law, they must ask the Legislature for it. And when decrees are issued, Article 60 subjects them to three limits: they can only cover measures from a closed list by type of emergency, they cease automatically when the state of emergency ends, and under no circumstances can they annul or modify the Constitution.

Commentary — TITLE V: REFORM AND CONSTITUTIONAL PROTECTION

Why these twelve specific entrenched clauses?

The entrenched clauses protect the pillars without which democracy ceases to be democracy:

1. Popular sovereignty (Article 1): without it, power does not reside in the people.
2. Hierarchy of legitimacy (Article 1): without it, a subordinate power can capture the superior one.
3. Universal suffrage (Article 4): without it, not everyone participates.
4. Vote guarantees (Article 5): without secrecy, the vote is coercible; without verifiability and auditability, fraud is undetectable.
5. Guarantee of popular nullification (Article 6): without it, the people lose the ability to correct errors of delegated power.
6. Equality before the law (Article 8): without it, rulers become a privileged class immune to the consequences of their actions.
7. Official language (Article 9): without at least one shared official language, legislation, justice, and administration cannot function uniformly or accessibly for all citizens.
8. Separation of powers (Article 20): without it, power concentrates.
9. Balance of powers (Article 39): without mutual assured destruction, one power can indefinitely subjugate the other without consequences.
10. Constitutional supremacy (Article 42): without it, an ordinary law can hollow out the Constitution’s content.
11. Right and procedures of reform (Articles 67 through 69 inclusive): without them, the Constitution becomes a tyranny of the dead over the living. The clause protects not only the right to reform but also the procedure for reforming entrenched clauses (Article 67), preventing an attacker from lowering the thresholds of the entrenched procedure via ordinary reform.

12. Fundamental democratic rights (Article 71): without them (expression, information, assembly, integrity, vote privacy), the democratic mechanisms work on paper but not in practice.

What is not an entrenched clause: administrative details, numbers of representatives, specific procedures. These can evolve without destroying democracy. The distinction is clear: the entrenched protects the existence of fundamental mechanisms; the numerical parameters of those mechanisms are protected through specific consensus levels (N5, N6) that allow adjustments without eliminating the mechanism itself.

Temporal asymmetry

Democracy has an inherent paradox: giving power to the people means also giving them the power to take away their own power. But renouncing democracy is like a collective suicide – or more precisely, like a rebirth: if someday society wishes to transform its foundations, it must be able to do so, but the process must be so difficult and deliberate that it only occurs when the consensus is genuine, sustained, and near-unanimous. That is why the protection mechanics must exist and be very strict.

The thresholds (95% legislative + 85% referendum + 75% census participation + 2 years of reflection + 21-year cooldown [one attempt per generation]) are not arbitrary: they seek to make the elimination of fundamental democratic guarantees extremely difficult, but not impossible. They were not devised with the intention of implanting a tyranny of old political systems over the living present; but as protection of future generations against irreversible decisions made under pressure or manipulation.

Of course, every measure justified as protection has the double edge of manipulation. Hence, from here I wish to encourage critical thinking about Level 6 consensus in the reader. I do not believe it is the perfect solution, but it is the best one I have come up with.

Article 70: Mechanisms prevail over rights

Constitutional mechanisms (voting, revocation, separation of powers) are the ultimate guarantee of all rights. Without the democratic machine, rights lack effective protection.

That is why no right can be invoked to block the mechanisms: it would be using a piece of the machine to destroy the entire machine. It is like building a functional car but with a plastic body instead of metal: it works perfectly until the first crash, and then there is nothing to protect what is inside.

Article 68: Ordinary reform and protection against bypass

Ordinary reform is the default mechanism for modifying any non-entrenched article: legislative N4 or popular N1 with 50% participation. It is deliberately accessible to allow the Constitution to evolve.

However, a potential loophole exists: if an article contains parameters protected at N5 or N6, a legislature with only N4 could reform the entire article, rewriting the parameters and bypassing their protection. To close this loophole, Article 68 establishes that the reform of an article requires consensus equal to or greater than the highest protection level of the parameters it contains. Thus, parameter protection cannot be circumvented through reform of the article that houses them.

The protection system is structured in three layers: entrenched clauses (Article 66) for irrenunciable fundamental principles, parameter protection (N3 to N6 depending on each article) for numerical values and specific configurations, and ordinary reform (Article 68) as the default mechanism for everything else.

Part 3: Conclusion and References

Conclusion

If this book achieves just one thing, let it be this: that the reader looks at their own constitution with an engineer's eyes and asks — where are the points of failure? Who watches the watchman? How much does it cost to buy this system? Has anyone recently abused — or ever abused — these points of failure?

The answers, almost always, are uncomfortable. But democracy is not built with comfort. It is built with effort, conviction, and cooperation.

Further Reading

Political theory

- **Antonio García Trevijano** — *Pure Theory of the Republic* (2010). The theoretical foundation for single-member districts, runoff elections, direct recall, and mutual destruction between branches of power. Essential reading to understand the structural framework of this Constitution.
- **Robert Michels** — *Political Parties: A Sociological Study of the Oligarchical Tendencies of Modern Democracy* (*Zur Soziologie des Parteiwesens in der modernen Demokratie*, 1911). The Iron Law of Oligarchy: every organization, no matter how democratic in its origins, inevitably tends to concentrate power in an elite. This Constitution is explicitly designed against that tendency.

Systems engineering and security

- **Byzantine fault tolerance** — The fundamental problem of distributed systems where some participants may be malicious. The design mindset of this Constitution — assuming that some actors will be dishonest and designing for the system to function despite it — comes directly from this field.
- **Software architecture principles** — Separation of concerns (SoC), single responsibility (SRP), don't repeat yourself (DRY), simplicity (KISS). These principles, originally formulated to build maintainable and resilient software, are applied here to constitutional drafting: each article has a single responsibility, each definition exists in a single place, and each exception is explicit.
- **Adversarial thinking** — Standard practice in cybersecurity and systems auditing. Instead of asking “does it work?” the question is “how does it break?”. Every mechanism in this Constitution has been subjected to that question. As an example of training in this mindset, you can consult the free course at Cyfrin Updraft — Security & Auditing.

Philosophy

- **Cheerfulness (Alegrismo) v0.0.5** — The author's own philosophy and work. Its central thesis is that happiness, after survival, is the deepest driver of human behavior, and that guiding one's life based on happiness and intelligence as the central axis is the best way to live. The conclusion that democracy is the natural destiny of a thriving human being comes from this work.